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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:18-cv-00997-RM-KLM

Duke University et al v. Sandoz Inc.
Assigned to: Judge Raymond P. Moore
Referred to: Magistrate Judge Kristen L. Mix
Case in other court: U.S. Court of Appeals, Federal Circuit, 24-01078
Eastern District of Texas, 2:18-cv-00129
Cause: 35:271 Patent Infringement

Date Filed: 04/26/2018
Date Terminated: 05/22/2023
Jury Demand: None
Nature of Suit: 830 Patent
Jurisdiction: Federal Question

Special Master

James Gregory Whitehair
TERMINATED: 08/24/2022

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Counter Defendant

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Date Filed	#	Docket Text
04/03/2018	<u>1</u>	ORDER - ORDERED that Plaintiffs claims against Sandoz are SEVERED and TRANSFERRED to the District of Colorado, and Plaintiffs claims against Alcon are SEVERED and TRANSFERRED to the District of Delaware. (SEVERED FROM CASE 2:17-CV-528). Signed by District Judge Rodney Gilstrap on 4/3/2018. (ch,) [Transferred from Texas Eastern on 4/26/2018.] (Entered: 04/03/2018)
04/03/2018	<u>2</u>	COMPLAINT against Sandoz Inc., filed by Duke University, Allergan Sales, LLC. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Exhibit A, # <u>3</u> Exhibit B)(ch,) [Transferred from Texas Eastern on 4/26/2018.] (Entered: 04/03/2018)
04/09/2018	<u>3</u>	Unopposed MOTION to Withdraw as Attorney by Allergan Sales, LLC, Duke University. (Attachments: # <u>1</u> Text of Proposed Order)(Fair, Andrea) [Transferred from Texas Eastern on 4/26/2018.] (Entered: 04/09/2018)
04/12/2018	<u>4</u>	ORDER - Attorney Andrea Leigh Fair terminated.. Signed by District Judge Rodney Gilstrap on 4/11/2018. (nkl,) [Transferred from Texas Eastern on 4/26/2018.] (Entered: 04/12/2018)
04/25/2018		*** FILED IN ERROR PER CLERK *** Interdistrict transfer to the Northern District of Texas Dallas Division. (ch,) Modified on 4/25/2018 (ch,). [Transferred from Texas Eastern on 4/26/2018.] (Entered: 04/25/2018)
04/25/2018		Interdistrict transfer to the District of Colorado. (ch,) [Transferred from Texas Eastern on 4/26/2018.] (Entered: 04/25/2018)
04/26/2018	<u>5</u>	Case transferred in from District of Texas Eastern; Case Number 2:18-cv-00129. File, transfer order and docket sheet received (Entered: 04/26/2018)
04/26/2018	6	FIRST AND FINAL NOTICE TO ALL ATTORNEY(S) AND UNREPRESENTED PARTIES IN REMOVED, TRANSFERRED, OR OTHER CASES. To receive any further notice in a case

		removed or transferred to this court, or special matters including discovery disputes, bankruptcy appeals, or withdrawals of reference, Multi-district litigation (MDL), etc., all attorneys and unrepresented parties must enter an appearance under D.C.COLO.LAttyR 5(a). An attorney must be an active member of this court's bar and be in good standing in accordance with D.C.COLO.LAttyR 3. A waiver of the fee for bar admission may apply in limited situations. (rvill,) (Entered: 04/26/2018)
04/26/2018	7	Report re Patent/Trademark: Report on the filing of an action emailed (NEF) to the Director of the U.S. Patent and Trademark Office. (rvill,) (Entered: 04/26/2018)
04/26/2018	8	Case assigned to Chief Judge Marcia S. Krieger and drawn to Magistrate Judge Kristen L. Mix. Text Only Entry. (rvill,) (Entered: 04/26/2018)
04/26/2018	9	Magistrate Judge consent form issued pursuant to 28 U.S.C. 636(c). (rvill,) (Entered: 04/26/2018)
04/26/2018	10	ORDER REFERRING CASE to Magistrate Judge Kristen L. Mix IT IS ORDERED that pursuant to 28 U.S.C. 636(b)(1)(A) and (B) and FED. R. CIV. P. 72(a) and (b), this matter is referred to the assigned United States Magistrate Judge to: (1) Convene a scheduling conference under FED. R. CIV. P. 16(b), enter a Scheduling Order meeting the requirements of D.C.COLO.LCivR 16.2, enter such orders as appropriate to enforce the Scheduling Order, and resolve discovery matters; (2) ADR: Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. Early Neutral Evaluation is approved. On the informal request of the magistrate judge or on the request of the parties by motion, the Court may direct the parties to engage in a settlement conference conducted by the magistrate judge if the parties have engaged in an Early Neutral Evaluation and are unable to afford or otherwise attain private settlement assistance; (3) Hear and determine referred matters in accordance with 28 U.S.C. 636(b)(1)(A) and (B). by Chief Judge Marcia S. Krieger on 04/26/2018. Text Only Entry (msklc4,) (Entered: 04/26/2018)
04/27/2018	11	NOTICE of Entry of Appearance by Jonathan Elliot Singer on behalf of Allergan Sales, LLC, Duke University Attorney Jonathan Elliot Singer added to party Allergan Sales, LLC(pty:pla), Attorney Jonathan Elliot Singer added to party Duke University (pty:pla) (Singer, Jonathan) (Entered: 04/27/2018)
04/27/2018	12	NOTICE of Entry of Appearance by Elizabeth Marjorie Flanagan on behalf of Allergan Sales, LLC, Duke University Attorney Elizabeth Marjorie Flanagan added to party Allergan Sales, LLC(pty:pla), Attorney Elizabeth Marjorie Flanagan added to party Duke University (pty:pla) (Flanagan, Elizabeth) (Entered: 04/27/2018)
04/27/2018	13	NOTICE of Entry of Appearance by John Michael Farrell on behalf of Allergan Sales, LLC, Duke University Attorney John Michael Farrell added to party Allergan Sales, LLC(pty:pla), Attorney John Michael Farrell added to party Duke University (pty:pla) (Farrell, John) (Entered: 04/27/2018)
05/03/2018	14	NOTICE of Entry of Appearance by Michael Patrick Dulin on behalf of Allergan Sales, LLC, Duke University Attorney Michael Patrick Dulin added to party Allergan Sales, LLC(pty:pla), Attorney Michael Patrick Dulin added to party Duke University (pty:pla) (Dulin, Michael) (Entered: 05/03/2018)
05/21/2018	15	ORDER SETTING SCHEDULING/PLANNING CONFERENCE by Magistrate Judge Kristen L. Mix on 5/21/18. Scheduling Conference set for 9/20/2018 10:30 AM in Courtroom A401 before Magistrate Judge Kristen L. Mix. (Attachments: # 1 Attachment 1, # 2 Attachment 2, # 3 Attachment 3) (lgale,) (Entered: 05/21/2018)

05/24/2018	16	NOTICE of Entry of Appearance by Thomas J. Filarski on behalf of Sandoz Inc. Attorney Thomas J. Filarski added to party Sandoz Inc.(pty:dft) (Filarski, Thomas) (Entered: 05/24/2018)
05/24/2018	17	NOTICE of Entry of Appearance by Vishal Gupta on behalf of Sandoz Inc. Attorney Vishal Gupta added to party Sandoz Inc.(pty:dft) (Gupta, Vishal) (Entered: 05/24/2018)
05/24/2018	18	NOTICE of Entry of Appearance by Robert F. Kappers on behalf of Sandoz Inc. Attorney Robert F. Kappers added to party Sandoz Inc.(pty:dft) (Kappers, Robert) (Entered: 05/24/2018)
05/24/2018	19	NOTICE of Entry of Appearance by Ryann Morgan Muir on behalf of Sandoz Inc. Attorney Ryann Morgan Muir added to party Sandoz Inc.(pty:dft) (Muir, Ryann) (Entered: 05/24/2018)
05/24/2018	20	NOTICE of Entry of Appearance by Matthew Michael Zuziak on behalf of Sandoz Inc. Attorney Matthew Michael Zuziak added to party Sandoz Inc.(pty:dft) (Zuziak, Matthew) (Entered: 05/24/2018)
05/31/2018	21	NOTICE of Entry of Appearance of <i>Daniel S. Young</i> by Daniel Shaw Young on behalf of Sandoz Inc. Attorney Daniel Shaw Young added to party Sandoz Inc.(pty:dft) (Young, Daniel) (Entered: 05/31/2018)
05/31/2018	22	NOTICE of Entry of Appearance of <i>Kathryn L. Bohmann</i> by Kathryn Lenhart Bohmann on behalf of Sandoz Inc. Attorney Kathryn Lenhart Bohmann added to party Sandoz Inc.(pty:dft) (Bohmann, Kathryn) (Entered: 05/31/2018)
08/02/2018	23	MOTION to Transfer Case by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit Declaration of R. Muir, # 2 Exhibit A-1, # 3 Exhibit A-2, # 4 Exhibit A-3, # 5 Exhibit A-4, # 6 Exhibit A-5, # 7 Exhibit A-6, # 8 Exhibit A-7, # 9 Exhibit A-8, # 10 Exhibit A-9, # 11 Exhibit A-10, # 12 Exhibit A-11, # 13 Exhibit A-12, # 14 Exhibit A-13, # 15 Exhibit A-14, # 16 Exhibit A-15, # 17 Exhibit A-16, # 18 Exhibit A-17, # 19 Exhibit A-18, # 20 Exhibit A-19, # 21 Exhibit A-20, # 22 Exhibit A-21, # 23 Exhibit A-22, # 24 Exhibit A-23, # 25 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 08/02/2018)
08/02/2018	24	MOTION to Stay re 23 MOTION to Transfer Case by Defendant Sandoz Inc.. (Attachments: # 1 Affidavit Declaration of Ryann M. Muir in Support of Sandoz Inc.'s Motion to Stay, # 2 Exhibit A-1, # 3 Exhibit A-2, # 4 Exhibit A-3, # 5 Proposed Order (PDF Only) Proposed Order)(Filarski, Thomas) (Entered: 08/02/2018)
08/23/2018	25	BRIEF in Opposition to 23 MOTION to Transfer Case filed by Plaintiffs Allergan Sales, LLC, Duke University. (Flanagan, Elizabeth) (Entered: 08/23/2018)
08/23/2018	26	BRIEF in Opposition to 24 MOTION to Stay re 23 MOTION to Transfer Case filed by Plaintiffs Allergan Sales, LLC, Duke University. (Flanagan, Elizabeth) (Entered: 08/23/2018)
08/23/2018	27	DECLARATION of <i>Elizabeth M. Flanagan</i> regarding Brief in Opposition to Motion 26 , Brief in Opposition to Motion 25 by Plaintiffs Allergan Sales, LLC, Duke University. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10)(Flanagan, Elizabeth) (Entered: 08/23/2018)
09/06/2018	28	REPLY to Response to 23 MOTION to Transfer Case filed by Defendant Sandoz Inc.. (Attachments: # 1 Affidavit Declaration of Ryann M. Muir in Support of Sandoz Inc.'s Reply, # 2 Exhibit B-1, # 3 Exhibit B-2, # 4 Exhibit B-3, # 5 Exhibit B-4, # 6 Exhibit B-5, # 7 Exhibit B-6, # 8 Exhibit B-7)(Filarski, Thomas) (Entered: 09/06/2018)
09/06/2018	29	REPLY to Response to 24 MOTION to Stay re 23 MOTION to Transfer Case filed by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 09/06/2018)
09/10/2018	30	Joint MOTION for Protective Order by Plaintiffs Allergan Sales, LLC, Duke University. (Attachments: # 1 Stipulated Protective Order)(Flanagan, Elizabeth) (Entered: 09/10/2018)
09/10/2018	31	MEMORANDUM regarding 30 Joint MOTION for Protective Order filed by Allergan Sales, LLC, Duke University. Motions referred to Magistrate Judge Kristen L. Mix by Chief Judge Marcia S. Krieger on 9/10/18. Text Only Entry (msklc2,) (Entered: 09/10/2018)

09/11/2018	32	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 9/11/18. Joint Motion for Entry of Stipulated Protective Order 30 is GRANTED. (lgale,) (Entered: 09/12/2018)
09/11/2018	33	STIPULATED PROTECTIVE ORDER GOVERNING CONFIDENTIALITY by Magistrate Judge Kristen L. Mix on 9/11/18. (lgale,) (Entered: 09/12/2018)
09/13/2018	34	Proposed Scheduling Order <i>in a Patent Case</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Flanagan, Elizabeth) (Entered: 09/13/2018)
09/20/2018	35	MINUTE ENTRY for Scheduling Conference held before Magistrate Judge Kristen L. Mix on 9/20/2018. Dispositive Motions due by 7/26/2019. Expert Discovery due 6/28/2019. Final Infringement Contentions due 3/29/2019. Final Invalidity Contentions due 4/19/2019. Invalidity Contentions due 9/21/2018. Infringement Contentions due 9/21/2018. Claim Construction Brief due 5/10/2019. Opinion of Counsel due 2/8/2019. Status Report due by 3/22/2019. FTR: KLM Courtroom A401. (Attachments: # 1 Discovery Procedures and Requirements of Practice) (lgale,) (Entered: 09/25/2018)
09/20/2018	36	SCHEDULING ORDER IN A PATENT CASE by Magistrate Judge Kristen L. Mix on 9/20/18. (lgale,) (Entered: 09/25/2018)
09/25/2018	37	TRIAL PREPARATION ORDER by Chief Judge Marcia S. Krieger on 9/25/18. (dkals,) (Entered: 09/25/2018)
10/04/2018	38	TRANSCRIPT of Rule 16(b) Scheduling Conference held on September 20, 2018 before Magistrate Judge Mix. Pages: 1-47. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (Patterson Transcription Company,) (Entered: 10/04/2018)
10/04/2018	39	Proposed Scheduling Order <i>Joint Proposed Amendment to Section 9 of Scheduling Order (Dkt. No. 36)</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Flanagan, Elizabeth) (Entered: 10/04/2018)
10/18/2018	40	NOTICE of Entry of Appearance by Eric Shaun Hochstadt on behalf of Allergan Sales, LLC, Duke University, Allergan, Inc. Attorney Eric Shaun Hochstadt added to party Allergan Sales, LLC(pty:pla), Attorney Eric Shaun Hochstadt added to party Duke University (pty:pla), Attorney Eric Shaun Hochstadt added to party Allergan, Inc.(pty:cd) (Hochstadt, Eric) (Entered: 10/18/2018)
10/18/2018	41	WITHDRAWN - MOTION to Dismiss <i>Sandoz's Counterclaims</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Memorandum in Support, # 2 Flanagan Declaration, # 3 Ex A to Flanagan Declaration, # 4 Ex B to Flanagan Declaration, # 5 Ex C to Flanagan Declaration, # 6 Ex D to Flanagan Declaration, # 7 Ex E to Flanagan Declaration, # 8 Ex F to Flanagan Declaration, # 9 Ex G to Flanagan Declaration, # 10 Ex H to Flanagan Declaration)(Flanagan, Elizabeth) Modified on 4/16/2019 to withdraw pursuant to 96 Order (dkals,). (Entered: 10/18/2018)
10/18/2018	42	MOTION to Stay , MOTION to Bifurcate <i>Antitrust and Patent Misuse Counterclaims</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Flanagan, Elizabeth) (Entered: 10/18/2018)
10/18/2018	43	MOTION for Order to <i>Requesting Prioritized Consideration of Plaintiffs' Motions, ECF Nos. 41 and 42</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Flanagan, Elizabeth) (Entered: 10/18/2018)

10/22/2018	44	MOTION for Leave to <i>to File Additional Summary Judgment Motion</i> by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit A, # 2 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 10/22/2018)
10/22/2018	45	ORDER denying 44 Motion for Leave: The Court sees no good cause at this time to preemptively permit multiple summary judgment motions. It is not readily apparent that all issues the Defendant intends to raise on summary judgment cannot effectively be raised in a single motion. By Chief Judge Marcia S. Krieger on 10/22/18. Text Only Entry (msklc2,) (Entered: 10/22/2018)
11/07/2018	46	TRANSCRIPT of TRANSCRIPT OF PROCEEDINGS held on 09/20/2018 before Magistrate Judge Mix. Pages: 1-50. Prepared by: AB Court Reporting & Video, Inc.. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (AB Court Reporting & Video, Inc.,) (Entered: 11/07/2018)
11/08/2018	47	MOTION for Summary Judgment <i>based on Collateral Estoppel</i> by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 11/08/2018)
11/08/2018	48	DECLARATION of <i>Matthew M. Zuziak</i> regarding MOTION for Summary Judgment <i>based on Collateral Estoppel</i> 47 by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit 1 - 11-cv-298 (MDNC) Final Judgment, # 2 Exhibit 2 - 13-cv-16 (MDNC) Final Judgment, # 3 Exhibit 3 - 14-cv-1034 (MDNC) Order and Judgment, # 4 Exhibit 4 - 17-cv-823 (MDNC) Pltfs' Memo in Support of Mtn for Summary Judgment based on Collateral Estoppel, # 5 Exhibit 5 - 17-cv-823 (MDNC) Defs' Opposition to Pltfs' Mtn for Summary Judgment based on Collateral Estoppel, # 6 Exhibit 6 - 17-cv-823 (MDNC) Pltfs' Reply in Support of Motion for Summary Judgment Based on Collateral Estoppel, # 7 Exhibit 7- International Patent Application No. PCT/US98/02289, # 8 Exhibit 8 - United States Patent No. 5,688,819, # 9 Exhibit 9 - 11-cv-298 (MDNC) Complaint for Patent Infringement, # 10 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 11/08/2018)
11/08/2018	49	BRIEF in Opposition to 41 MOTION to Dismiss <i>Sandoz's Counterclaims</i> filed by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 11/08/2018)
11/08/2018	50	DECLARATION of <i>Robert F. Kappers</i> regarding Brief in Opposition to Motion 49 by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6)(Filarski, Thomas) (Entered: 11/08/2018)
11/08/2018	51	BRIEF in Opposition to 42 MOTION to Stay MOTION to Bifurcate <i>Antitrust and Patent Misuse Counterclaims</i> filed by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 11/08/2018)
11/08/2018	52	BRIEF in Opposition to 41 MOTION to Dismiss <i>Sandoz's Counterclaims</i> , 42 MOTION to Stay MOTION to Bifurcate <i>Antitrust and Patent Misuse Counterclaims</i> filed by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 11/08/2018)
11/08/2018	53	DECLARATION of <i>Robert F. Kappers</i> regarding MOTION for Order to <i>Requesting Prioritized Consideration of Plaintiffs' Motions, ECF Nos. 41 and 42</i> 43 by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Filarski, Thomas) (Entered: 11/08/2018)

11/09/2018	54	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 48 Declaration, filed by attorney Matthew Michael Zuziak. The s/signature did not match the filer's name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil cases).(Text Only Entry) (dkals,) (Entered: 11/09/2018)
11/09/2018	55	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 50 Declaration, filed by attorney Robert F. Kappers. The s/signature did not match the filer's name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil cases).(Text Only Entry) (dkals,) (Entered: 11/09/2018)
11/09/2018	56	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 53 Declaration, filed by attorney Robert F. Kappers. Attorney or pro se has used an incorrect signature format in violation of D.C.COLO.LCivR 5.1(a) and 4.3(a) of the Electronic Case Filing Procedures (Civil cases). DO NOT REFILE THE DOCUMENT. (Text Only Entry) (dkals,) (Entered: 11/09/2018)
11/09/2018	57	BRIEF in Opposition to 43 MOTION for Order to <i>Requesting Prioritized Consideration of Plaintiffs' Motions, ECF Nos. 41 and 42 (correcting ECF 52, inadvertently linked to ECF 41, 42)</i> filed by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 11/09/2018)
11/13/2018	58	ORDER denying 23 Motion to Transfer Venue, and 24 Motion for Stay of Proceedings pending determination of its Motion to Transfer Venue, by Chief Judge Marcia S. Krieger on 11/13/18. (dkals,) (Entered: 11/13/2018)
11/16/2018	59	MOTION for Extension of Time to File Response/Reply as to 47 MOTION for Summary Judgment <i>based on Collateral Estoppel</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Exhibit A)(Flanagan, Elizabeth) (Entered: 11/16/2018)
11/16/2018	60	RESPONSE to 59 MOTION for Extension of Time to File Response/Reply as to 47 MOTION for Summary Judgment <i>based on Collateral Estoppel</i> filed by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 11/16/2018)
11/19/2018	61	RESPONSE to 59 MOTION for Extension of Time to File Response/Reply as to 47 MOTION for Summary Judgment <i>based on Collateral Estoppel</i> filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Flanagan, Elizabeth) (Entered: 11/19/2018)
11/20/2018	62	ORDER granting 59 Motion for Extension of Time to File Response/Reply: Plaintiffs shall respond to Defendant's 47 Motion for Summary Judgment by not later than 12/20/2018. by Chief Judge Marcia S. Krieger on 11/20/2018. Text Only Entry (msklc1,) (Entered: 11/20/2018)
11/20/2018	63	REPLY to Response to 41 MOTION to Dismiss <i>Sandoz's Counterclaims</i> filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Hochstadt, Eric) (Entered: 11/20/2018)
11/20/2018	64	REPLY to Response to 42 MOTION to Stay MOTION to Bifurcate <i>Antitrust and Patent Misuse Counterclaims</i> filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Hochstadt, Eric) (Entered: 11/20/2018)
11/20/2018	65	REPLY to Response to 43 MOTION for Order to <i>Requesting Prioritized Consideration of Plaintiffs' Motions, ECF Nos. 41 and 42</i> filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Hochstadt, Eric) (Entered: 11/20/2018)
12/12/2018	66	Unopposed MOTION for Extension of Time to File Response/Reply as to 47 MOTION for Summary Judgment <i>based on Collateral Estoppel</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order)(Filarski, Thomas) (Entered: 12/12/2018)

12/13/2018	67	ORDER granting 66 Motion for Extension of Time to File Response/Reply: Reply due Jan. 17, 2019. By Chief Judge Marcia S. Krieger on 12/13/18. Text Only Entry (msklc2,) (Entered: 12/13/2018)
12/20/2018	68	BRIEF in Opposition to 47 MOTION for Summary Judgment <i>based on Collateral Estoppel</i> filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Exhibit 10, # 2 Exhibit 11, # 3 Exhibit 12, # 4 Exhibit 13, # 5 Exhibit 14, # 6 Exhibit 15, # 7 Exhibit 16, # 8 Exhibit 17, # 9 Exhibit 18, # 10 Exhibit 19, # 11 Exhibit 20, # 12 Exhibit 21, # 13 Exhibit 22, # 14 Exhibit 23, # 15 Exhibit 24, # 16 Exhibit 25, # 17 Exhibit 26, # 18 Exhibit 27, # 19 Exhibit 28, # 20 Exhibit 29, # 21 Exhibit 30, # 22 Exhibit 31, # 23 Exhibit 32, # 24 Exhibit 33, # 25 Exhibit 34, # 26 Exhibit 35, # 27 Exhibit 36, # 28 Exhibit 37) (Flanagan, Elizabeth) (Entered: 12/20/2018)
12/31/2018	69	STIPULATION for Extension of Time <i>to Respond to Discovery Requests</i> by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 12/31/2018)
01/11/2019	70	NOTICE of Entry of Appearance by Deanna Jean Reichel on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Deanna Jean Reichel added to party Allergan Sales, LLC(pty:pla), Attorney Deanna Jean Reichel added to party Allergan, Inc.(pty:cd), Attorney Deanna Jean Reichel added to party Duke University (pty:pla) (Reichel, Deanna) (Entered: 01/11/2019)
01/11/2019	71	NOTICE of Entry of Appearance by Phillip Wagner Goter on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Phillip Wagner Goter added to party Allergan Sales, LLC(pty:pla), Attorney Phillip Wagner Goter added to party Allergan, Inc.(pty:cd), Attorney Phillip Wagner Goter added to party Duke University (pty:pla) (Goter, Phillip) (Entered: 01/11/2019)
01/11/2019	72	NOTICE of Entry of Appearance by Kelly A. Del Dotto on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Kelly A. Del Dotto added to party Allergan Sales, LLC(pty:pla), Attorney Kelly A. Del Dotto added to party Allergan, Inc.(pty:cd), Attorney Kelly A. Del Dotto added to party Duke University (pty:pla) (Del Dotto, Kelly) (Entered: 01/11/2019)
01/11/2019	73	NOTICE of Entry of Appearance by Susan E. Morrison on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Susan E. Morrison added to party Allergan Sales, LLC(pty:pla), Attorney Susan E. Morrison added to party Allergan, Inc.(pty:cd), Attorney Susan E. Morrison added to party Duke University (pty:pla) (Morrison, Susan) (Entered: 01/11/2019)
01/17/2019	74	REPLY to Response to 47 MOTION for Summary Judgment <i>based on Collateral Estoppel</i> filed by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 01/17/2019)
01/18/2019	75	STIPULATION for Extension of Time <i>to respond to Sandoz Subpoena to Dr. Mitchel deLong</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Flanagan, Elizabeth) (Entered: 01/18/2019)
01/22/2019	76	Joint MOTION to Bifurcate <i>and Stay Discovery and Trial Regarding Sandoz Inc.'s Counterclaims</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only)) (Filarski, Thomas) (Entered: 01/22/2019)
01/28/2019	77	NOTICE <i>Plaintiffs' Request for Oral Argument on Defendant's Motion for Summary Judgment Based on Collateral Estoppel</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Flanagan, Elizabeth) (Entered: 01/28/2019)
01/30/2019	78	Stipulated MOTION to Amend/Correct/Modify 36 Scheduling Order by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 01/30/2019)
01/30/2019	79	MEMORANDUM regarding 78 Stipulated MOTION to Amend/Correct/Modify 36 Scheduling Order filed by Sandoz Inc.. Motions referred to Magistrate Judge Kristen L. Mix by Chief Judge Marcia S. Krieger on 1/30/19. Text Only Entry (msklc2,) (Entered: 01/30/2019)
01/31/2019	80	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 1/31/19. Stipulated Motion to Amend Scheduling Order 78 is GRANTED. Fact Discovery due 4/1/2019. Final Infringement

		Contentions due 4/15/2019. Final Invalidity Contentions due 4/29/2019. Opinion of Counsel due 2/11/2019. Status Report due by 4/8/2019. (lgale,) (Entered: 01/31/2019)
02/01/2019	81	STIPULATION for Extension of Time <i>to Respond to Sandoz, Inc.'s Subpoena to Gregory J. Hartwig</i> by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 02/01/2019)
02/20/2019	82	STIPULATION for Extension of Time <i>various discovery deadlines</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Flanagan, Elizabeth) (Entered: 02/20/2019)
02/27/2019	83	Unopposed MOTION to Withdraw as Attorney <i>Matthew M. Zuziak</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Kappers, Robert) (Entered: 02/27/2019)
03/05/2019	84	ORDER granting 83 Motion to Withdraw as Attorney. Attorney Matthew Michael Zuziak terminated. By Judge Marcia S. Krieger on 3/5/19. Text Only Entry (msklc2,) (Entered: 03/05/2019)
03/13/2019	85	Joint MOTION for Hearing/Conference re 76 Joint MOTION to Bifurcate <i>and Stay Discovery and Trial Regarding Sandoz Inc.'s Counterclaims</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Young, Daniel) (Entered: 03/13/2019)
03/13/2019	86	MEMORANDUM regarding 76 Joint MOTION to Bifurcate <i>and Stay Discovery and Trial Regarding Sandoz Inc.'s Counterclaims</i> filed by Sandoz Inc., 85 Joint MOTION for Hearing/Conference re 76 Joint MOTION to Bifurcate <i>and Stay Discovery and Trial Regarding Sandoz Inc.'s Counterclaims</i> filed by Sandoz Inc.. Motions referred to Magistrate Judge Kristen L. Mix by Judge Marcia S. Krieger on 3/12/19. Text Only Entry (msklc2,) (Entered: 03/13/2019)
03/14/2019	87	NOTICE of Entry of Appearance <i>of Counsel</i> by Kelly Nicole Williams on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University (Williams, Kelly) (Entered: 03/14/2019)
03/28/2019	88	Joint MOTION to Amend/Correct/Modify 80 Order on Motion to Amend/Correct/Modify, 36 Scheduling Order by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only)) (Filarski, Thomas) (Entered: 03/28/2019)
03/29/2019	89	MEMORANDUM regarding 88 Joint MOTION to Amend/Correct/Modify 80 Order on Motion to Amend/Correct/Modify, 36 Scheduling Order filed by Sandoz Inc.. Motions referred to Magistrate Judge Kristen L. Mix by Judge Marcia S. Krieger on 3/29/19. Text Only Entry (msklc2,) (Entered: 03/29/2019)
04/02/2019	90	ORDER granting 76 Joint Motion to Stay Discovery on Counterclaims and Bifurcate Trial on Counterclaims. For the reasons set forth in the Motion, discovery on Defendant's Counterclaims is STAYED and trial on the Counterclaims is BIFURCATED. Counterclaim Defendants shall file a motion to withdraw their pending Motion to Dismiss Counterclaims 41 no later than April 15, 2019. B Magistrate Judge Kristen L. Mix on April 2, 2019. Text Only Entry (klm) (Entered: 04/02/2019)
04/02/2019	91	ORDER denying as moot 85 Motion for Hearing/Conference. In light of the Order on the parties' Joint Motion to Bifurcate and Stay Discovery and Trial on Counterclaims 76 , no hearing is necessary. By Magistrate Judge Kristen L. Mix on April 2, 2019. Text Only Entry (klm) (Entered: 04/02/2019)
04/02/2019	92	ORDER granting in part and denying in part 88 Motion to Amend/Correct/Modify Scheduling Order. In light of the previous Order staying discovery as to antitrust issues and for good cause shown, the Scheduling Order is amended as follows: The deadline to complete fact discovery relating to patent issues is extended to April 12, 2019 except for completion of the deposition of Christine Miller. The deadline to complete Ms. Miller's deposition is April 30, 2019. The deadline to file a Joint Status Report is extended to April 18, 2019. The deadline for final infringement contentions is extended to April 19, 2019. The deadline for final invalidity contentions is extended to May 3, 2019. The deadline for opening expert reports is extended to May 17, 2019. The deadline for rebuttal expert reports is extended to June 14, 2019. The expert discovery deadline is extended to June 28, 2019. All other deadlines are unchanged. The parties shall jointly propose a Scheduling Order regarding adjudication of Defendant's Counterclaims

		within 30 days of final adjudication of the patent claims in this Court. By Magistrate Judge Kristen L. Mix on April 2, 2019. Text Only Entry (klm) (Entered: 04/02/2019)
04/02/2019		***Set/Reset Deadlines: Status Report due by 4/18/2019 pursuant to 92 Order. (nmarb,) (Entered: 04/04/2019)
04/04/2019	93	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 4/4/19. This matter is before the Court on a disputed discovery issue. Discovery Hearing set for 4/12/2019 09:00 AM in Courtroom A 401 before Magistrate Judge Kristen L. Mix. Attorneys who will be representing a party and who reside in Colorado shall appear in person in Courtroom A-401 of the Alfred A. Arraj United States Courthouse, 901 19th Street, Denver, Colorado. Any attorneys who do not reside in Colorado and who plan to attend the hearing shall appear by telephone by first conferencing together and then calling Chambers at (303) 335-2770 via a land line at the designated time. (nmarb,) (Entered: 04/04/2019)
04/12/2019	94	MINUTE ENTRY for Discovery Hearing held before Magistrate Judge Kristen L. Mix on 4/12/2019. FTR: KLM Courtroom A401. (lgale,) (Entered: 04/15/2019)
04/15/2019	95	Unopposed MOTION to Withdraw Document re 41 MOTION to Dismiss <i>Sandoz's Counterclaims</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Flanagan, Elizabeth) (Entered: 04/15/2019)
04/15/2019	96	ORDER withdrawing 41 Motion to Dismiss; granting 95 Motion to Withdraw Document: The motion to dismiss is deemed withdrawn. By Judge Marcia S. Krieger on 4/15/19. Text Only Entry (msklc2,) (Entered: 04/15/2019)
04/16/2019	97	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 4/16/19. Discovery Hearing set for 4/24/2019 1:00 PM in Courtroom A401 before Magistrate Judge Kristen L. Mix. (lgale,) (Entered: 04/16/2019)
04/18/2019	98	Joint STATUS REPORT by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Flanagan, Elizabeth) (Entered: 04/18/2019)
04/23/2019	99	ORDER vacating Discovery Hearing set for April 24, 2019 at 1:00 p.m. On review of the parties' submissions, the court finds that this matter is suitable for appointment of a discovery Master pursuant to Fed. R. Civ. P. 53(a)(1)(C). Accordingly, the discovery hearing set for April 24, 2019 at 1:00 p.m. is VACATED. Further orders regarding appointment of a discovery Master will be entered in due course. By Magistrate Judge Kristen L. Mix on April 23, 2019. Text Only Entry (klm) (Entered: 04/23/2019)
04/23/2019	100	TRANSCRIPT of TRANSCRIPT OF PROCEEDINGS held on 04/12/2019 before Magistrate Judge Mix. Pages: 1-35. Prepared by: AB Court Reporting & Video, Inc.. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (AB Court Reporting & Video, Inc.,) (Entered: 04/23/2019)
04/25/2019	101	NOTICE AND ORDER REGARDING APPOINTMENT OF SPECIAL MASTER by Magistrate Judge Kristen L. Mix on 4/25/19. (lgale,) (Additional attachment(s) added on 4/25/2019: # 1 Special Master Affidavit) (jgonz,). (Entered: 04/25/2019)
05/03/2019	102	ORDER Appointing Master for Discovery. Pursuant to Fed. R. Civ. P. 53, J. Gregory Whitehair, Esq. is APPOINTED MASTER for the purpose of managing and supervising discovery and resolving discovery disputes until further order of this Court, by Magistrate Judge Kristen L. Mix on 5/3/2019. (agarc,) (Entered: 05/06/2019)

06/14/2019	103	Joint MOTION to Amend/Correct/Modify 92 Order on Motion to Amend/Correct/Modify,,, 80 Order on Motion to Amend/Correct/Modify, 36 Scheduling Order <i>Scheduling Order and Minute Orders</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Flanagan, Elizabeth) (Entered: 06/14/2019)
06/14/2019	104	MEMORANDUM regarding 103 Joint MOTION to Amend/Correct/Modify 92 Order on Motion to Amend/Correct/Modify,,, 80 Order on Motion to Amend/Correct/Modify, 36 Scheduling Order <i>Scheduling Order and Minute Orders</i> filed by Allergan Sales, LLC, Allergan, Inc., Duke University. Motions referred to Magistrate Judge Kristen L. Mix by Judge Marcia S. Krieger on 6/14/19. Text Only Entry (msklc2,) (Entered: 06/14/2019)
06/17/2019	105	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 6/17/19. Joint Motion to Amend Scheduling Order [ECF No. 36] and Minute Order [ECF Nos. 80 and 92] 103 is GRANTED. Discovery due by 7/19/2019. Dispositive Motions due by 8/9/2019. (lgale,) (Entered: 06/17/2019)
07/17/2019	106	NOTICE of Entry of Appearance by Gretchen Porter Miller on behalf of Sandoz Inc. Attorney Gretchen Porter Miller added to party Sandoz Inc.(pty:dft) (Miller, Gretchen) (Entered: 07/17/2019)
07/19/2019	107	Joint MOTION to Amend/Correct/Modify 92 Order on Motion to Amend/Correct/Modify,,, 80 Order on Motion to Amend/Correct/Modify, 105 Order on Motion to Amend/Correct/Modify, 36 Scheduling Order by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Flanagan, Elizabeth) (Entered: 07/19/2019)
07/19/2019	108	MEMORANDUM regarding 107 Joint Motion to Amend Scheduling Order and Minute Orders filed by Allergan Sales, LLC, Allergan, Inc., Duke University. Motion referred to Magistrate Judge Kristen L. Mix by Judge Marcia S. Krieger on 7/19/2019. Text Only Entry (msklc4) (Entered: 07/19/2019)
07/22/2019	109	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 7/22/19. Joint Motion to Amend Scheduling Order [ECF No. 36] and Minute Order [ECF Nos. 80, 92, and 105] 107 is GRANTED. Dispositive Motions due by 9/4/2019. Expert Discovery due 7/24/2019(lgale,) (Entered: 07/22/2019)
09/04/2019	110	MOTION to Exclude <i>Sandoz Inc.'s Motion under Fed. R. Evid. 702</i> by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 09/04/2019)
09/18/2019	111	OPINION and ORDER by Judge Marcia S. Krieger on 9/18/2019. ORDERED the Plaintiffs' Motion to Bifurcate (#42) and Plaintiffs' Motion to Expedite (#43) consideration of the Motion to Bifurcate are DENIED AS MOOT . Sandoz's Motion for Summary Judgment (#47) is DENIED . (sphil,) (Entered: 09/19/2019)
09/25/2019	112	MOTION for Leave to Restrict by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Flanagan, Elizabeth) (Entered: 09/25/2019)
09/25/2019	113	NOTICE re 111 Order,, Terminate Motions, <i>of Compliance regarding the public documents filed in the Eastern District of Texas</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Attachments: # 1 EDTX C.A. No. 17-528 Docket Sheet, # 2 EDTX Dkt. No. 2, # 3 EDTX Dkt. No. 3, # 4 EDTX Dkt. No. 4, # 5 EDTX Dkt. No. 5, # 6 EDTX Dkt. No. 8, # 7 EDTX Dkt. No. 13, # 8 EDTX Dkt. No. 17, # 9 EDTX Dkt. No. 27, # 10 EDTX Dkt. No. 28 Ex 1-3, # 11 EDTX Dkt. No. 28 Ex 4, # 12 EDTX Dkt. No. 29, # 13 EDTX Dkt. No. 30, # 14 EDTX Dkt. No. 31, # 15 EDTX Dkt. No. 32, # 16 EDTX Dkt. No. 33, # 17 EDTX Dkt. No. 34, # 18 EDTX Dkt. No. 39, # 19 EDTX Dkt. No. 44, # 20 EDTX Dkt. No. 45, # 21 EDTX Dkt. No. 48, # 22 EDTX Dkt. No. 49, # 23 EDTX Dkt. No. 50, # 24 EDTX Dkt. No. 54, # 25 EDTX Dkt. No. 58, # 26 EDTX Dkt. No. 59, # 27 EDTX Dkt. No. 60, # 28 EDTX Dkt. No. 61, # 29 EDTX Dkt. No. 62, # 30 EDTX Dkt. No. 63, # 31 EDTX Dkt. No. 64, # 32 EDTX Dkt. No. 65, # 33 EDTX Dkt. No. 73, # 34 EDTX Dkt. No. 76, # 35 EDTX Dkt. No. 77, # 36 EDTX Dkt. No. 78, # 37 EDTX Dkt. No. 79, # 38 EDTX Dkt. No. 80, # 39 EDTX Dkt. No. 81, # 40 EDTX Dkt. No. 84, # 41 EDTX Dkt. No. 85, # 42 EDTX Dkt. No. 86, # 43 EDTX Dkt. No. 87, # 44 EDTX

		Dkt. No. 88, # 45 EDTX Dkt. No. 89, # 46 EDTX Dkt. No. 90, # 47 EDTX Dkt. No. 91, # 48 EDTX Dkt. No. 92, # 49 EDTX Dkt. No. 93, # 50 EDTX Dkt. No. 94, # 51 EDTX Dkt. No. 95, # 52 EDTX Dkt. No. 98, # 53 EDTX Dkt. No. 99, # 54 EDTX Dkt. No. 100, # 55 EDTX Dkt. No. 102, # 56 EDTX Dkt. No. 103, # 57 EDTX Dkt. No. 104, # 58 EDTX Dkt. No. 105, # 59 EDTX Dkt. No. 106, # 60 EDTX Dkt. No. 107)(Flanagan, Elizabeth) (Entered: 09/25/2019)
09/25/2019	114	RESTRICTED DOCUMENT - Level 1: Notice of Compliance to 111 OPINION and ORDER by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc... (Attachments: # 1 Sealed EDTX Dkt. No. 51, # 2 Sealed EDTX Dkt. No. 53, # 3 Sealed EDTX Dkt. No. 67, # 4 Sealed EDTX Dkt. No. 68, # 5 Sealed EDTX Dkt. No. 69, # 6 Sealed EDTX Dkt. No. 71)(Flanagan, Elizabeth) Modified on 9/26/2019 to add document tile and linkage. (sphil,). (Entered: 09/25/2019)
09/30/2019	115	NOTICE of <i>Related Cases</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Attachments: # 1 Exhibit A)(Flanagan, Elizabeth) (Entered: 09/30/2019)
10/08/2019	116	ADVISORY NOTICE TO ATTORNEY AND COURT: Under D.C.COLO.LAttyR 3(a)attorneys JOHN MICHAEL FARRELL, ERIC SHAUN HOCHSTADT, JONATHAN ELLIOT SINGER were administratively removed from the court's attorney roll and barred from filing electronically under CM/ECF for failing to pay the 2018 Biennial Fee. Each attorney must complete a Bar/ECF application through that attorney's Attorney Services Portal account and pay the full application fee to be restored to the attorney roll and CM/ECF. Upon reinstatement, counsel must file a Notice of Entry of Appearance in this case. (Text Only Entry) (mfred) (Entered: 10/08/2019)
10/09/2019	117	NOTICE of Entry of Appearance by Jonathan E. Singer on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Jonathan E. Singer added to party Allergan, Inc.(pty:cd) (Singer, Jonathan) (Entered: 10/09/2019)
10/09/2019	118	NOTICE of Entry of Appearance by John M. Farrell on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney John M. Farrell added to party Allergan, Inc.(pty:cd) (Farrell, John) (Entered: 10/09/2019)
10/10/2019	119	NOTICE of Entry of Appearance by Eric Shaun Hochstadt on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University (Hochstadt, Eric) (Entered: 10/10/2019)
10/23/2019	120	NOTICE of <i>Related Cases (Supplemental)</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Morrison, Susan) (Entered: 10/23/2019)
05/13/2020	121	CORPORATE DISCLOSURE STATEMENT identifying Other Affiliate AbbVie Inc. for Allergan, Inc.. (Morrison, Susan) (Entered: 05/13/2020)
05/13/2020	122	CORPORATE DISCLOSURE STATEMENT identifying Other Affiliate AbbVie Inc. for Allergan Sales, LLC. (Morrison, Susan) (Entered: 05/13/2020)
08/03/2020	123	NOTICE of Entry of Appearance by Lisa B. Pensabene on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Lisa B. Pensabene added to party Allergan Sales, LLC(pty:pla), Attorney Lisa B. Pensabene added to party Allergan, Inc.(pty:cd), Attorney Lisa B. Pensabene added to party Duke University (pty:pla) (Pensabene, Lisa) (Entered: 08/03/2020)
08/03/2020	124	NOTICE of Entry of Appearance by Hassen Amir Sayeed on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Hassen Amir Sayeed added to party Allergan Sales, LLC(pty:pla), Attorney Hassen Amir Sayeed added to party Allergan, Inc.(pty:cd), Attorney Hassen Amir Sayeed added to party Duke University (pty:pla) (Sayeed, Hassen) (Entered: 08/03/2020)
08/06/2020	125	Unopposed MOTION to Withdraw as Attorney by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Flanagan, Elizabeth) (Entered: 08/06/2020)
08/14/2020	126	Proposed Order re 125 Unopposed MOTION to Withdraw as Attorney <i>Proposed Order Granting Unopposed Motion to Withdraw Appearance</i> by Plaintiffs Allergan Sales, LLC, Duke University,

		Counter Defendant Allergan, Inc. (Dulin, Michael) Modified on 8/19/2020 to edit document title. (sphil,). (Entered: 08/14/2020)
09/11/2020	127	ORDER granting 125 Motion to Withdraw as Attorney. Attorney Elizabeth Marjorie Flanagan; Phillip Wagner Goter; Susan E. Morrison; Deanna Jean Reichel; Jonathan E. Singer; Kelly A. Del Dotto and John M. Farrell terminated. By Judge Marcia S. Krieger on 9/11/20. Text Only Entry(msklc2,) (Entered: 09/11/2020)
10/27/2020	128	ORDER: The Defendant's Motion to Exclude Under Rule 702 110 was admittedly filed in conformance with the Rule 702 procedure that the Court employed at the time the motion was filed. However, as of January 2020, the Court has modified its Rule 702 procedure to diminish the need for evidentiary hearings and favor the resolution of motions on paper. Accordingly, the Court denies the Defendant's motion without prejudice. Within 21 days of this Order, the Defendant may re-file a Rule 702 motion that complies with the current Rule 702 procedure, found at http://www.cod.uscourts.gov/Portals/0/Documents/Judges/MSK/Rule_702_Procedure.pdf . Given the age of this matter, the Court will attempt to give any re-filed Rule 702 motion prioritized consideration. As to the Plaintiffs' Motion to Restrict 112 public access to certain filings prior to the transfer of this case to this District, the sole grounds stated are that the materials in question implicate a previously-issued Protective Order. Pursuant to D.C. Colo. L. Civ. R. 7.2(c)(2), the mere fact that a document is covered by a protective order is not sufficient to warrant a restriction on public access. Accordingly, the motion is denied without prejudice. Within 14 days, any party may file a renewed motion that specifically identifies the particular portions of the documents in question and makes a sufficient showing as required by Local Rule 7.2(c). By Judge Marcia S. Krieger on 10/27/20. Text Only Entry(msklc2,) (Entered: 10/27/2020)
11/05/2020	129	Unopposed MOTION to Withdraw as Attorney <i>Ryann M. Muir</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 11/05/2020)
11/06/2020	130	ORDER granting 129 Motion to Withdraw as Attorney. Attorney Ryann Morgan Muir terminated. By Judge Marcia S. Krieger on 11/6/20. Text Only Entry(msklc2,) (Entered: 11/06/2020)
11/13/2020	131	Unopposed MOTION for Extension of Time to <i>Refile Fed. R. Evid. 702 Motion</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 11/13/2020)
11/13/2020	132	ORDER granting 131 Motion for Extension of Time to File :Rule 702 motions due Nov. 24, 2020. By Judge Marcia S. Krieger on 11/13/20. Text Only Entry(msklc2,) (Entered: 11/13/2020)
11/23/2020	133	Joint MOTION for Extension of Time to <i>Refile Fed. R. Evid. 702 Motion</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 11/23/2020)
11/23/2020	134	ORDER granting 133 Motion for Extension of Time to File: Rule 702 motions due Dec. 1, 2020. By Judge Marcia S. Krieger on 11/23/20.(msklc2,) (Entered: 11/23/2020)
12/01/2020	135	RESTRICTED DOCUMENT - Level 1: by Defendant Sandoz Inc... (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6)(Filarski, Thomas) (Entered: 12/01/2020)
12/01/2020	136	DECLARATION of <i>Thomas J. Filarski</i> regarding Restricted Document - Level 1 135 by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 12/01/2020)
12/01/2020	137	Sandoz Inc.'s Amended MOTION Under Fed. R. Evid. 702 by Defendant Sandoz Inc.. (Public Entry for Restricted Document 135 filed on 12/1/2020). Text Only Entry. (sphil,) (Entered: 12/02/2020)

12/15/2020	138	Joint MOTION for Leave to <i>Restrict Access to</i> 135 Restricted Document - Level 1 by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit Redacted Public Version of ECF No. 135)(Filarski, Thomas) (Entered: 12/15/2020)
12/22/2020	139	RESTRICTED DOCUMENT - Level 1: by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc... (Attachments: # 1 Affidavit Declaration of Michael Dulin in Support thereof, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Exhibit 3, # 5 Exhibit 4, # 6 Exhibit 5, # 7 Exhibit 6, # 8 Exhibit 7)(Dulin, Michael) (Entered: 12/22/2020)
12/22/2020	141	Plaintiffs' Opposition to 137 Sandoz Inc.'s Amended MOTION Under Fed. R. Evid. 702 filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Public Entry for Restricted Document 139 filed on 12/22/2020) . Text Only Entry. (sphil,) (Entered: 12/24/2020)
12/23/2020	140	Unopposed MOTION for Extension of Time to File Response/Reply as to 137 MOTION for Order to <i>Sandoz Inc.s Amended Motion Under Fed. R. Evid. 702</i> 135 by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 12/23/2020)
12/24/2020	142	ORDER granting 140 Motion for Extension of Time to File Response/Reply: Reply due Jan. 12, 2021. By Judge Marcia S. Krieger on 12/24/20.(msklc2,) (Entered: 12/24/2020)
01/05/2021	143	Joint MOTION for Leave to Restrict by Plaintiffs Allergan Sales, LLC, Duke University. (Attachments: # 1 Exhibit to Joint Motion to Restrict Access)(Dulin, Michael) (Entered: 01/05/2021)
01/12/2021	144	Sandoz Inc.s Reply to [139,141] Plaintiffs Opposition To Sandozs Amended Motion Under Fed. R. Evid. 702 by Defendant Sandoz Inc... (Filarski, Thomas) Modified on 9/7/2021 to remove restriction level 1 pursuant to 152 Order. (sphil,). (Entered: 01/12/2021)
01/12/2021	145	REPLY to Response to 137 MOTION for Order filed by Defendant Sandoz Inc.. (Public Entry for Restricted Document 144 filed on 1/12/2021) . Text Only Entry. (sphil,) (Entered: 01/14/2021)
01/15/2021	146	NOTICE of Entry of Appearance by John Lloyd Abramic on behalf of Sandoz Inc.Attorney John Lloyd Abramic added to party Sandoz Inc.(pty:dft) (Abramic, John) (Entered: 01/15/2021)
01/15/2021	147	Unopposed MOTION to Withdraw as Attorney <i>Gretchen P. Miller</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Abramic, John) (Entered: 01/15/2021)
01/26/2021	148	Unopposed MOTION for Leave to Restrict by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Dulin, Michael) (Entered: 01/26/2021)
01/26/2021	149	NOTICE of Entry of Appearance by Caitlin Patricia Hogan on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Caitlin Patricia Hogan added to party Allergan Sales, LLC(pty:pla), Attorney Caitlin Patricia Hogan added to party Allergan, Inc.(pty:cd), Attorney Caitlin Patricia Hogan added to party Duke University (pty:pla) (Hogan, Caitlin) (Entered: 01/26/2021)
01/26/2021	150	Exhibits in Support of 148 Unopposed MOTION for Leave to Restrict by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Exhibit Redacted Motion)(Hogan, Caitlin) (Entered: 01/26/2021)
05/15/2021	151	ADVISORY NOTICE TO ATTORNEY AND COURT: Under D.C.COLO.LAttyR 3(a), Eric Shaun Hochstadt was administratively removed from the court's attorney roll and barred from filing electronically under CM/ECF for failing to pay the 2020 Biennial Fee. Counsel must complete a Bar/ECF application through counsel's existing Attorney Services Portal account and pay the full application fee to be restored to the attorney roll and CM/ECF. Counsel, however, need not pay any delinquent biennial fees. Upon reinstatement, counsel must file a Notice of Entry of Appearance in this case. (Text Only Entry) (mfred) (Entered: 05/15/2021)
09/07/2021	152	MINUTE ORDER by Judge Marcia S. Krieger on 9/7/2021, re: [135, 137] Sandoz's Motion to Exclude Dr. Maness' Testimony (# 135, 137) is DENIED . The parties Motions to Restrict Access

		(# 138, 143, 148) are GRANTED IN PART AND DENIED IN PART . Within 7 days of this Order, the parties shall publicly-file versions of Sandoz' motion and the Plaintiffs' response that redact only the units of the Y axis on Figure 5. The Clerk of the Court shall lift the provisional restriction placed on Docket # 144. The remaining provisional restrictions shall remain in place. (sphl,) (Entered: 09/07/2021)
09/09/2021	153	ORDER granting 147 Motion to Withdraw as Attorney. Attorney Gretchen Porter Miller terminated. By Judge Marcia S. Krieger on 9/9/21. Text Only Entry(msklc2,) (Entered: 09/09/2021)
09/14/2021	154	RESPONSE to 152 Minute Order,, Terminate Motions,, by Defendant Sandoz Inc.. (Attachments: # 1 Redacted Docket #135)(Young, Daniel) (Entered: 09/14/2021)
09/14/2021	155	BRIEF in Opposition to 137 MOTION for Order to <i>Plaintiff's Opposition to Sandoz's Amended Motion Under Fed. R. Evid. 702</i> filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Dulin, Michael) (Entered: 09/14/2021)
11/01/2021	156	ORDER: It appearing that all deadlines in the Scheduling Order have passed and there are no remaining pretrial proceedings that are required before the patent claims and defenses in this case proceed to trial, the parties shall begin preparation of a Proposed Pretrial Order and shall jointly contact chambers to schedule a Pretrial Conference. By Judge Marcia S. Krieger on 11/1/21. Text Only Entry (msklc2,) (Entered: 11/01/2021)
12/08/2021	157	ORDER DIRECTING REASSIGNMENT: Due to the undersigned's unavailability to preside over a trial in this case and with the prior permission of the Chief Judge pursuant to D.C. Colo. L. Civ. R. 40.1(a), the Clerk of the Court is directed to reassign this case to another Article III judge for purposes of trial. By Judge Marcia S. Krieger on 12/8/21. Text Only Entry (msklc2,) (Entered: 12/08/2021)
12/09/2021	158	CASE REASSIGNED pursuant to 157 ORDER DIRECTING REASSIGNMENT. This case is randomly reassigned to Judge Raymond P. Moore. All future pleadings should be designated as 18-cv-00997-RM-KLM. (Text Only Entry) (sdunb,) (Entered: 12/09/2021)
12/09/2021	159	ORDER REFERRING CASE to Magistrate Judge Kristen L. Mix. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of D.C.COLO.LCivR 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, (4) conduct a pretrial conference and enter a pretrial order, and (5) conduct hearings, including evidentiary hearings, and submit proposed findings of fact and recommendations for rulings on dispositive motions. Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the magistrate judge or on the request of the parties by motion, this court may direct the parties to engage in an early neutral evaluation, a settlement conference, or another alternative dispute resolution proceeding. By Judge Raymond P. Moore on 12/9/2021. (Text Only Entry) (rmsec) (Entered: 12/09/2021)
12/09/2021	160	MINUTE ORDER: With the assignment of this matter, the parties are advised that throughout this case they are expected to be familiar and comply with not only the Local Rules of this District, but also Judge Raymond P. Moore's Civil Practice Standards, which may be found at: http://www.cod.uscourts.gov/JudicialOfficers/ActiveArticleIIIJudges/HonRaymondPMoore.aspx . SO ORDERED by Judge Raymond P. Moore on 12/9/2021. (Text Only Entry) (rmsec) (Entered: 12/09/2021)
12/09/2021	161	MINUTE ORDER: The parties are instructed to contact Magistrate Judge Kristen L. Mix's Chambers at 303.335.2770 on or before the close of business on Tuesday, December 14, 2021, to schedule a Pretrial Conference. SO ORDERED by Judge Raymond P. Moore on 12/9/2021. (Text Only Entry) (rmsec) (Entered: 12/09/2021)

12/15/2021	162	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 12/15/2021. Proposed Pretrial Order due by 4/14/2022. Pretrial Conference set for 4/21/2022 01:30 PM in Courtroom A 401 before Magistrate Judge Kristen L. Mix. (alave,) (Entered: 12/16/2021)
04/14/2022	163	Proposed Pretrial Order by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3)(Dulin, Michael) (Entered: 04/14/2022)
04/18/2022	164	MINUTE ORDER by Magistrate Judge Kristen L. Mix on April 18, 2022. IT IS HEREBY ORDERED that the Final Pretrial Order 163 is REJECTED. IT IS FURTHER ORDERED that a Revised Proposed Final Pretrial Order shall be filed by April 27, 2022 that conforms with D.C.COLO.LCivR 16.3 and the attached form. The Claims and Defenses shall contain only a summary of the claims, facts, and legal theories, and eliminate any legal argument and eliminate stipulations that impact how the trial will be conducted. The Revised Proposed Pretrial Order to be submitted under the ECF Procedures may be submitted in WordPerfect or pdf format and shall be emailed to Mix_Chambers@cod.uscourts.gov. IT IS FURTHER ORDERED that the Final Pretrial Conference set for April 21, 2022, at 1:30 p.m. is VACATED, to be reset if necessary after the Revised Proposed Final Pretrial Order is submitted by the parties. (csarr,) (Entered: 04/18/2022)
04/26/2022	165	Proposed Pretrial Order by Plaintiffs Allergan Sales, LLC, Duke University. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Dulin, Michael) (Entered: 04/26/2022)
04/27/2022	166	REVISED FINAL PRETRIAL ORDER by Magistrate Judge Kristen L. Mix on April 27, 2022. (Attachments: # 1 Exhibit, # 2 Exhibit) (csarr,) (Entered: 04/27/2022)
04/27/2022	167	MINUTE ORDER: In light of the Revised Final Pretrial Order entered by Magistrate Judge Kristen L. Mix 166 , it is ORDERED that counsel shall jointly contact the Court's Judicial Assistant via email (Deanne_bader@cod.uscourts.gov) on or before 5:00 pm on Thursday, April 28, 2022 to obtain trial dates. SO ORDERED by Judge Raymond P. Moore on 4/27/2022. (Text Only Entry) (rmsec) (Entered: 04/27/2022)
05/03/2022	168	ORDER SETTING CASE FOR TRIAL. This matter has been scheduled for a five-day jury trial on the docket of Judge Raymond P. Moore in the U.S. District Court, Courtroom A601, 6th Floor, 901 19th Street, Denver, Colorado to commence on March 27, 2023 at 9:00 a.m. On the first day of trial to a jury, counsel are expected to be present at 8:30 a.m. to go over any final matters before the commencement of trial. A Trial Preparation Conference is set for February 24, 2023 at 10:00 a.m. By Judge Raymond P. Moore on 05/03/2022. (sdunb,) (Entered: 05/03/2022)
05/31/2022	169	Joint MOTION for Leave to <i>to Request Deadlines Associated with Filing Certain Motions in Limine</i> 166 Order by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Dulin, Michael) (Entered: 05/31/2022)
05/31/2022	170	ORDER: This matter is before the Court on the Parties' Joint Motion to Request Deadlines Associated with Filing Certain Motions in Limine 169 . Being fully advised, the Motion is GRANTED. The Parties shall file all Motions in Limine by July 22, 2022. Responses to those Motions shall be due on August 5, 2022. Any Replies shall be filed by August 15, 2022. SO ORDERED by Judge Raymond P. Moore on 5/31/2022. (Text Only Entry)(rmsec) (Entered: 05/31/2022)
06/14/2022	171	Unopposed MOTION to Clarify re 170 Order on Motion for Leave, <i>the Parties' Joint Motion to Request Deadlines Associated with Filing Certain Motions in Limine (DKT. 170)</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 06/14/2022)
06/15/2022	172	ORDER: This matter is before the Court on Defendant's Unopposed Motion for Clarification of the Court's Order 171 . The Court, having reviewed the Motion and being fully advised in the matter, GRANTS the Motion. It is hereby ORDERED that the Parties shall file motions by July 22, 2022, on the three special issues identified in the Parties' Joint Motion 169 , and the Parties may bring other Motions in Limine up until seven days before the Trial Preparation Conference

		pursuant to this Court's Civil Practice Standards. SO ORDERED by Judge Raymond P. Moore on 6/15/2022. (Text Only Entry)(rmsec) (Entered: 06/15/2022)
07/22/2022	173	RESTRICTED DOCUMENT - Level 1: by Defendant Sandoz Inc... (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5)(Filarski, Thomas) (Entered: 07/22/2022)
07/22/2022	174	MOTION in Limine <i>Plaintiffs' Motion in Limine to Exclude Sandoz's Evidence Concerning Prior Litigation</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Dulin, Michael) (Entered: 07/22/2022)
07/22/2022	175	RESTRICTED DOCUMENT - Level 1: by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc... (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Affidavit of Michael Dulin)(Dulin, Michael) (Entered: 07/22/2022)
07/22/2022	176	MOTION in Limine No. 1 Issue Preclusion Binds Plaintiffs to a Subset of Findings About Prior Art and Limits the Scope of Trial by Defendant Sandoz Inc. (Public Entry for Level 1 Restricted Document 173). Text Only Entry (athom,) (Entered: 07/24/2022)
07/22/2022	177	MOTION in Limine to Exclude Sandoz's Evidence of Intent at Trial by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Public Entry for Level 1 Restricted Document 175). Text Only Entry (athom,) (Entered: 07/24/2022)
08/05/2022	178	Conventionally Submitted Material : Flash drive of exhibits in support of the forthcoming Opposition to Allergan's Motion in Limine by Defendant Sandoz Inc. Located in Clerk's Office A-1-6. Text Only Entry (sdunb,) (Entered: 08/05/2022)
08/05/2022	179	RESTRICTED DOCUMENT - Level 1: Opposition to Plaintiffs' Motion in Limine Concerning Prior Litigations filed by Defendant Sandoz Inc. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H)(Filarski, Thomas) Modified on 8/5/2022 to add restriction per attorney phone call (sdunb,). Modified on 8/24/2022 to add title (sdunb,). (Entered: 08/05/2022)
08/05/2022	180	BRIEF in Opposition to 176 MOTION in Limine <i>No. 1</i> filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Dulin, Michael) (Entered: 08/05/2022)
08/05/2022	181	RESTRICTED DOCUMENT - Level 1: by Defendant Sandoz Inc... (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L, # 13 Exhibit M)(Filarski, Thomas) (Entered: 08/05/2022)
08/05/2022	182	NOTICE re 181 Restricted Document - Level 1, <i>Notice of Conventionally Filed Exhibits I-K</i> by Defendant Sandoz Inc. (Filarski, Thomas) (Entered: 08/05/2022)
08/08/2022	183	MINUTE ORDER: This matter is before the Court on Defendant's Opposition to Plaintiff's Motion in Limine Concerning Prior Litigations 179 . Attorneys for Defendant informed the Court that the Opposition was inadvertently filed without a level 1 restriction. The Court has directed the Clerk of Court to mark the Opposition as restricted-level 1. It shall retain that restriction for only 14 days unless this Court receives a Motion to Restrict pursuant to D.C.Colo.LCivR 7.2(c). SO ORDERED by Judge Raymond P. Moore on 8/8/2022. (Text Only Entry) (rmsec) (Entered: 08/08/2022)
08/15/2022	184	REPLY to Response to 176 MOTION in Limine <i>No. 1 Issue Preclusion Binds Plaintiffs to a Subset of Findings About the Prior Art and Limits the Scope of Trial</i> filed by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit 6, # 2 Exhibit 7, # 3 Exhibit 8, # 4 Exhibit 9, # 5 Exhibit 10, # 6 Exhibit 11, # 7 Exhibit 12, # 8 Exhibit 13, # 9 Exhibit 14)(Filarski, Thomas) (Entered: 08/15/2022)
08/15/2022	185	RESTRICTED DOCUMENT - Level 1: Reply in Support of its Motion in Limine to Exclude Sandoz's Evidence Concerning Prior Litigations (D.I. 174) by Plaintiffs Allergan Sales, LLC,

		Duke University, Counter Defendant Allergan, Inc... (Dulin, Michael) Modified on 8/16/2022 to include title (sdunb,). (Entered: 08/15/2022)
08/15/2022	186	RESTRICTED DOCUMENT - Level 1:Reply in Support of its Motion in Limine to Exclude Sandoz's Evidence of Intent at Trial (D.I. 175) by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Attachments: # 1 Affidavit Declaration of Michael P. Dulin, # 2 Exhibit 8, # 3 Exhibit 9, # 4 Exhibit 10, # 5 Exhibit 11)(Dulin, Michael) Modified on 8/16/2022 to include title (sdunb,). (Entered: 08/15/2022)
08/16/2022	187	MOTION to Withdraw 102 Order Referring Case to Special Master, by Special Master James Gregory Whitehair. (Whitehair, James) (Entered: 08/16/2022)
08/17/2022	188	MEMORANDUM regarding 187 MOTION to Withdraw 102 Order Referring Case to Special Master, filed by James Gregory Whitehair. Motion referred to Magistrate Judge Kristen L. Mix. By Judge Raymond P. Moore on 8/17/2022. (Text Only Entry) (rmsec) (Entered: 08/17/2022)
08/22/2022	189	Unopposed MOTION for Leave to <i>Request for Oral Argument Regarding the Parties' Motions in Limine</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Dulin, Michael) (Entered: 08/22/2022)
08/24/2022	190	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 08/24/2022. IT IS HEREBY ORDERED that the Discovery Master Whitehair's Motion to Withdraw from Master Appointment 187 is GRANTED. James Gregory Whitehair is hereby withdrawn as the Special Master in this case, and shall be removed from the electronic certificate of mailing.(alave,) (Entered: 08/24/2022)
08/29/2022	191	ORDER: This matter is before the Court on Plaintiffs' Unopposed Request for Oral Argument Regarding the Parties' Motions In Limine 189 . Being fully advised, the Motion is GRANTED. The Matter is set for a half-day hearing before Judge Moore beginning at 9:00 on Tuesday, October 4, 2022 in Courtroom A601 on the Sixth Floor of the Alfred A. Arraj United States Courthouse located at 901 19th Street, Denver, Colorado. SO ORDERED by Judge Raymond P. Moore on 8/29/2022. (Text Only Entry)(rmsec) (Entered: 08/29/2022)
09/26/2022	192	Unopposed MOTION for Hearing/Conference re 191 Order on Motion for Leave,, <i>Sandoz's Unopposed Motion for Telephonic Connection and Attendance for Sandoz In-House Counsel for the Hearing Scheduled October 4, 2022</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Filarski, Thomas) (Entered: 09/26/2022)
09/27/2022	193	ORDER: This matter is before the Court on Defendant's Unopposed Motion for Telephonic Connection and Attendance for Sandoz In-House Counsel for the Hearing Scheduled for October 4, 2022 192 . Being fully advised, the Motion is GRANTED. The Court will permit Defendant's In-House Counsel to appear either by video or telephone via VTC. Defense Counsel is directed to contact the Court's Courtroom Deputy via email (Cathy_Pearson@cod.uscourts.gov) on or before 3:30 p.m. on September 30, 2022 to obtain VTC instructions. SO ORDERED by Judge Raymond P. Moore on 9/27/2022. (Text Only Entry)(rmsec) (Entered: 09/27/2022)
09/29/2022	194	Exhibit List <i>Joint List of all Parties - Plaintiffs and Defendants - Hearing Exhibit List re Motions in Limine</i> by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Dulin, Michael) (Entered: 09/29/2022)
10/04/2022	195	2022 Biennial fee payment for Thomas J. Filarski \$60, receipt number ACODC-8694882.. (Filarski, Thomas) (Entered: 10/04/2022)
10/04/2022	196	2022 Biennial fee payment for John Lloyd Abramic \$60, receipt number ACODC-8695073.. (Abramic, John) (Entered: 10/04/2022)
10/04/2022	197	2022 Biennial fee payment for Robert F. Kappers \$60, receipt number ACODC-8695142.. (Kappers, Robert) (Entered: 10/04/2022)
10/04/2022	198	COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Oral Argument Hearing held on 10/4/2022. 174 , 176 , and 177 Motions in Limine are taken under advisement. Court Reporter: Tammy Hoffschildt. (cpear) (Entered: 10/04/2022)

10/05/2022	199	2022 Biennial fee payment for Vishal Gupta \$60, receipt number ACODC-8697679.. (Gupta, Vishal) (Entered: 10/05/2022)
10/05/2022	200	NOTICE of Entry of Appearance by Candice Jaesun Kwark on behalf of Sandoz Inc. Attorney Candice Jaesun Kwark added to party Sandoz Inc.(pty:dft) (Kwark, Candice) (Entered: 10/05/2022)
10/05/2022	201	2022 Biennial fee payment for Candice Jaesun Kwark \$60, receipt number ACODC-8697736.. (Kwark, Candice) (Entered: 10/05/2022)
10/10/2022	202	TRANSCRIPT of Hearing held on October 4, 2022 before Judge Moore,. Pages: 1-108. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff,) (Entered: 10/10/2022)
10/17/2022	203	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: Attorneys Thomas J. Filarski, John Lloyd Abramic, Robert F. Kappers, Vishal Gupta, and Candice Jaesun Kwark: your 2022 Biennial / Renewal Fee payments were ENTERED IN ERROR in this civil case. The <u>Instructions for Payment of the Attorney 2022 Biennial Renewal Fee</u> available on the U.S. District Court website (http://www.cod.uscourts.gov/AttorneyInformation/BiennialRenewalFeeInformation.aspx) and the bullet point guidance on the Biennial Fee page itself indicate that the fee must be paid in the specially-designated <u>miscellaneous</u> case, 22-mc-6000. DO NOT TAKE ANY FURTHER ACTION. Instead, in order to maintain a correct public record of payments of the biennial fee by counsel, court staff must now manually transfer the payment record from this case to 22-mc-6000. IN THE FUTURE, counsel SHALL fully review instruction documents, and if unsure how to proceed, contact the Attorney Services Division of the court at: cod_attorneyservices@cod.uscourts.gov . Signed on this date, Edward Butler, Legal Officer, U.S. District Court. (Text Only Entry) (ebutl) (Entered: 10/17/2022)
11/03/2022	204	ORDER. That Sandoz's 173 Motion in Limine is GRANTED with respect to Finding 1, GRANTED IN PART with respect to Finding 2, and DENIED with respect to Findings 3 and 4. That Allergan's 174 Motion in Limine to Exclude Evidence of Prior Litigations is GRANTED. That Allergan's 175 Motion in Limine to Exclude Sandoz's Evidence of Intent is GRANTED IN PART. By Judge Raymond P. Moore on 11/03/2022.(sdunb,) (Entered: 11/03/2022)
12/07/2022	205	MOTION for Reconsideration of the Court's Order (Dkt. 204) Excluding Sandoz from Introducing Evidence of Its Belief of Invalidity in Defense of Willful Infringement by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 12/07/2022)
12/09/2022	206	MOTION to Withdraw as Attorney by Plaintiffs Allergan Sales, LLC, Duke University. (Dulin, Michael) (Entered: 12/09/2022)
12/09/2022	207	MEMORANDUM regarding 206 MOTION to Withdraw as Attorney filed by Allergan Sales, LLC, Duke University. Motion referred to Magistrate Judge Kristen L. Mix. By Judge Raymond P. Moore on 12/9/2022. (Text Only Entry) (rmsec) (Entered: 12/09/2022)
12/12/2022	208	NOTICE of Entry of Appearance by Kathryn A. Reilly on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Kathryn A. Reilly added to party Allergan Sales, LLC(pty:pla), Attorney Kathryn A. Reilly added to party Allergan, Inc.(pty:cd), Attorney Kathryn A. Reilly added to party Duke University (pty:pla) (Reilly, Kathryn) (Entered: 12/12/2022)
12/12/2022	209	NOTICE of Entry of Appearance by Jacob A. Rey on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Jacob A. Rey added to party Allergan Sales, LLC(pty:pla),

		Attorney Jacob A. Rey added to party Allergan, Inc.(pty:cd), Attorney Jacob A. Rey added to party Duke University (pty:pla) (Rey, Jacob) (Entered: 12/12/2022)
12/12/2022	210	NOTICE of Entry of Appearance by Chuan Cheng on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Chuan Cheng added to party Allergan Sales, LLC(pty:pla), Attorney Chuan Cheng added to party Allergan, Inc.(pty:cd), Attorney Chuan Cheng added to party Duke University (pty:pla) (Cheng, Chuan) (Entered: 12/12/2022)
12/13/2022	211	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 12/13/2022. IT IS HEREBY ORDERED that the Motion 206 is GRANTED. Attorney Dulin is relieved of any further representation of Plaintiffs in this case. The Clerk of Court is instructed to terminate Attorney Dulin as counsel of record, and the Clerk of Court shall remove his name from the electronic certificate of mailing. Plaintiffs continue to be represented by the counsel noted on the record. (alave,) (Entered: 12/13/2022)
12/14/2022	212	RESPONSE to 205 MOTION for Reconsideration of the Court's Order (Dkt. 204) Excluding Sandoz from Introducing Evidence of Its Belief of Invalidity in Defense of Willful Infringement filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Reilly, Kathryn) (Entered: 12/14/2022)
12/27/2022	213	BRIEF in Support of 205 MOTION for Reconsideration of the Court's Order (Dkt. 204) Excluding Sandoz from Introducing Evidence of Its Belief of Invalidity in Defense of Willful Infringement filed by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 12/27/2022)
01/09/2023	214	NOTICE of Entry of Appearance of Co-Counsel by Richard Kent Kornfeld on behalf of Sandoz Inc. Attorney Richard Kent Kornfeld added to party Sandoz Inc.(pty:dft) (Kornfeld, Richard) (Entered: 01/09/2023)
01/09/2023	215	MOTION to Withdraw as Attorney <i>Adsero IP Attorneys Daniel S. Young and Kathryn L. Bohmann</i> by Defendant Sandoz Inc.. (Young, Daniel) (Entered: 01/09/2023)
01/09/2023	216	MEMORANDUM regarding 215 MOTION to Withdraw as Attorney <i>Adsero IP Attorneys Daniel S. Young and Kathryn L. Bohmann</i> filed by Sandoz Inc. Motion referred to Magistrate Judge Kristen L. Mix. By Judge Raymond P. Moore on 1/9/2023. (Text Only Entry) (rmsec) (Entered: 01/09/2023)
01/10/2023	217	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 01/10/2023. IT IS HEREBY ORDERED that the Motion to Withdraw Appearances 215 is GRANTED. Attorneys Young and Bohmann are relieved of any further representation of Sandoz Inc. The Clerk of Court is instructed to terminate Attorneys Young and Bohmann as counsel of record, and the Clerk of Court shall remove their name from the electronic certificate of mailing. Sandoz Inc. continues to be represented by the other counsel noted on the record.(alave,) (Entered: 01/11/2023)
01/12/2023	218	NOTICE of Entry of Appearance by Timothy S. Durst on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Timothy S. Durst added to party Allergan Sales, LLC(pty:pla), Attorney Timothy S. Durst added to party Allergan, Inc.(pty:cd), Attorney Timothy S. Durst added to party Duke University (pty:pla) (Durst, Timothy) (Entered: 01/12/2023)
02/03/2023	219	RESTRICTED DOCUMENT - Level 1: by Defendant Sandoz Inc... (Attachments: # 1 Appendix Declaration of Candice J. Kwark, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D) (Kornfeld, Richard) (Entered: 02/03/2023)
02/03/2023	220	RESTRICTED DOCUMENT - Level 1: by Defendant Sandoz Inc... (Attachments: # 1 Appendix Declaration of Candice J. Kwark, # 2 Exhibit A, # 3 Exhibit B)(Kornfeld, Richard) (Entered: 02/03/2023)
02/03/2023	221	RESTRICTED DOCUMENT - Level 1: by Defendant Sandoz Inc... (Attachments: # 1 Appendix Declaration of Candice J. Kwark, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D) (Kornfeld, Richard) (Entered: 02/03/2023)
02/03/2023	222	RESTRICTED DOCUMENT - Level 1: by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc... (Attachments: # 1 Exhibit 1 - Jorge Depo, # 2 Exhibit 2 -

		Miller Depo)(Rey, Jacob) (Entered: 02/03/2023)
02/03/2023	223	MOTION in Limine # 4 to Exclude Sandoz's Undisclosed "Statements" by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Exhibit 1 - January 31, 2023 Email, # 2 Exhibit 2 - Rule 26(a)(1) Disclosures)(Rey, Jacob) (Entered: 02/03/2023)
02/03/2023	224	MOTION in Limine # 5 to Preclude Sandoz from Offering Evidence or Argument Regarding Non-Asserted Patents and Patent Claims by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Exhibit 1 - Heathcock Deposition)(Rey, Jacob) (Entered: 02/03/2023)
02/03/2023	225	MOTION in Limine No. 2 Regarding Evidence and Argument that Sandoz "Copied" Latisse by Defendant Sandoz Inc. (Public entry for Restricted Document 219 filed 02/03/2023) Text only entry.(sdunb,) (Entered: 02/06/2023)
02/03/2023	226	MOTION in Limine No. 3 Relating to Sandoz's Burden of Proof on Invalidity by Defendant Sandoz Inc. (Public entry for Restricted Document 220 filed 2/03/2023) Text only entry. (sdunb,) (Entered: 02/06/2023)
02/03/2023	227	MOTION in Limine No. 4 to Limit the Damages Period as a Matter of Law by Defendant Sandoz Inc. (Public entry for Restricted Document 221 filed 2/03/2023) Text only entry. (sdunb,) (Entered: 02/06/2023)
02/03/2023	228	MOTION in Limine #3 to Exclude Argument Regarding the Alleged Effect of Damages on the Price of Generic Products and Consumer Costs and the Alleged Benefits of Generic Drugs by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Public entry for Restricted Document 222 filed 2/03/2023) Text only entry. (sdunb,) (Entered: 02/06/2023)
02/07/2023	229	NOTICE of Entry of Appearance by Katherine H. Tellez on behalf of Sandoz Inc. Attorney Katherine H. Tellez added to party Sandoz Inc.(pty:dft) (Tellez, Katherine) (Entered: 02/07/2023)
02/08/2023	230	Joint MOTION for Extension of Time to <i>Submit Proposed Jury Instructions and Verdict Forms</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Attachments: # 1 Proposed Order (PDF Only))(Rey, Jacob) (Entered: 02/08/2023)
02/08/2023	231	ORDER: This matter is before the Court on the Parties' Joint Motion for Extension of Time to Submit Proposed Jury Instructions and Verdict Forms 230 . Having considered the Motion and finding good cause, the Motion is GRANTED. The Parties shall have until February 14, 2023, in which to submit their proposed jury instructions and verdict forms. SO ORDERED by Judge Raymond P. Moore on 2/8/2023. (Text Only Entry)(rmsec) (Entered: 02/08/2023)
02/14/2023	232	Proposed Jury Instructions <i>Jointly Proposed Jury Instructions</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 02/14/2023)
02/14/2023	233	Proposed Verdict Form <i>Joint Submission Of Proposed Verdict Forms</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 02/14/2023)
02/15/2023	234	AMENDED ORDER. The Court ORDERS: That Sandoz's 173 Motion in Limine is GRANTED with respect to Finding 1, GRANTED IN PART with respect to Finding 2, and DENIED with respect to Findings 3 and 4; That Allergan's 174 Motion in Limine to Exclude Evidence of Prior Litigations is GRANTED ; and That Allergan's 175 Motion in Limine to Exclude Sandoz's Evidence of Intent is GRANTED IN PART . By Judge Raymond P. Moore on 2/15/2023. (sdunb,) (Entered: 02/15/2023)
02/16/2023	235	ORDER: This matter is before the Court on Defendant's Motion for Reconsideration of the Court's Order (Dkt. 204) Excluding Sandoz from Introducing Evidence of its Belief of Invalidity in Defense of Willful Infringement 205 . Having reviewed the Motion, Plaintiffs' Response, and Defendant's Reply, and the pertinent case law, the Motion is GRANTED IN PART. The Court Amends its prior Order as set forth in 234 . In all other respects the Motion is DENIED. SO ORDERED by Judge Raymond P. Moore on 2/16/2023. (Text Only Entry)(rmsec) (Entered: 02/16/2023)

02/16/2023	236	Unopposed MOTION for Leave to Restrict by Plaintiffs Allergan Sales, LLC, Duke University. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Rey, Jacob) (Entered: 02/16/2023)
02/17/2023	237	Proposed Voir Dire by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 02/17/2023)
02/17/2023	238	Proposed Voir Dire by Defendant Sandoz Inc.. (Kornfeld, Richard) (Entered: 02/17/2023)
02/17/2023	239	RESTRICTED DOCUMENT - Level 1: Response to Plaintiffs' 220 Motion in Limine No. 3 by Defendant Sandoz Inc. (Attachments: # 1 Exhibit A)(Kornfeld, Richard) Modified on 2/21/2023 to add title (sdunb,). (Entered: 02/17/2023)
02/17/2023	240	Witness List by Defendant Sandoz Inc.. (Kornfeld, Richard) (Entered: 02/17/2023)
02/17/2023	241	ORDER: This Matter is before the Court on Plaintiff's Unopposed Motion to Restrict Exhibits B and C to Defendant's Motion in Limine #4 (ECF Nos. 221-3, 221-4) 236 . Plaintiffs request that those unredacted exhibits be maintained at Level 1. Being fully advised, the Motion is GRANTED. The Clerk of the Court is directed to maintain Exhibits B and C to Defendant's Motion in Limine #4 [221-3] and [221-4] UNDER RESTRICTION AT LEVEL 1. The Clerk of the Court is directed to docket [236-1], Exhibit B to Defendant's Motion in Limine #4, and [236-2], Exhibit C to Defendant's Motion in Limine #4 as separate entries. SO ORDERED by Judge Raymond P. Moore on 2/17/2023. (Text Only Entry)(rmsec) (Entered: 02/17/2023)
02/17/2023	242	RESPONSE to 226 MOTION in Limine #3 <i>Relating to Sandoz's Burden of Proof on Invalidity</i> filed by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc.. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E)(Rey, Jacob) (Entered: 02/17/2023)
02/17/2023	243	Opposition to Sandoz's 221 Motion in Limine # 4 by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Attachments: # 1 Restricted - Exhibit A)(Rey, Jacob) Modified on 2/21/2023 to add title (sdunb,). Modified on 3/2/2023 to remove restriction on main document.(sphil,). (Entered: 02/17/2023)
02/17/2023	244	RESTRICTED DOCUMENT - Level 1: Opposition to Sandoz's 219 Motion in Limine #2 by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E)(Rey, Jacob) Modified on 2/21/2023 to add title (sdunb,). (Entered: 02/17/2023)
02/17/2023	245	RESTRICTED DOCUMENT - Level 1: Response to Plaintiffs' 221 Motion in Limine No. 4 by Defendant Sandoz Inc. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Kornfeld, Richard) Modified on 2/21/2023 to add title (sdunb,). (Entered: 02/17/2023)
02/17/2023	246	Exhibit List by Defendant Sandoz Inc.. (Kornfeld, Richard) (Entered: 02/17/2023)
02/17/2023	247	Witness List by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 02/17/2023)
02/17/2023	248	Exhibit List by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 02/17/2023)
02/17/2023	249	RESTRICTED DOCUMENT - Level 1: Response to Plaintiffs' 224 Motion in Limine No. 5 by Defendant Sandoz Inc. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I)(Kornfeld, Richard) Modified on 2/21/2023 to add title (sdunb,). (Entered: 02/17/2023)
02/17/2023	250	Exhibit B to Defendant's 221 Motion in Limine #4 by Plaintiffs Allergan Sales, LLC, Duke University. [Docketed pursuant to 241 Order] (sdunb,) (Entered: 02/21/2023)
02/17/2023	251	Exhibit C to Defendant's 221 Motion in Limine #4 by Plaintiffs Allergan Sales, LLC, Duke University. [Docketed pursuant to 241 Order] (sdunb,) (Entered: 02/21/2023)
02/22/2023	252	STIPULATION and [Proposed] Order No. 1 by Defendant Sandoz Inc.. (Kornfeld, Richard) (Entered: 02/22/2023)

02/22/2023	253	STIPULATION and [Proposed] Order No. 2 by Defendant Sandoz Inc.. (Kornfeld, Richard) (Entered: 02/22/2023)
02/23/2023	254	REPLY to Response to 228 MOTION in Limine #3 <i>Regarding the Alleged Effect of Damages on the Price of Generic Products and Consumer Costs and the Alleged Benefits of Generic Drugs</i> filed by Plaintiffs Allergan Sales, LLC, Duke University. (Reilly, Kathryn) (Entered: 02/23/2023)
02/23/2023	255	REPLY to Response to 223 MOTION in Limine # 4 to <i>Exclude Sandoz's Undisclosed "Statements" (Reply in Support of Motion in Limine #4 to Exclude Sandoz's 2015 Notice Letter)</i> filed by Plaintiffs Allergan Sales, LLC, Duke University. (Reilly, Kathryn) (Entered: 02/23/2023)
02/23/2023	256	REPLY to Response to 224 MOTION in Limine # 5 to <i>Preclude Sandoz from Offering Evidence or Argument Regarding Non-Asserted Patents and Patent Claims Plaintiffs Reply In Support Of Its Motion In Limine #5 Regarding Certain Unasserted Patents (D.I. 224)</i> filed by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 02/23/2023)
02/24/2023	257	COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Trial Preparation Conference held on 2/24/2023. The following motions are denied: 219 and 222 Motions in Limine. The following motions are granted in part and denied in part: 220 and 223 Motions in Limine. The following motions were deferred: 221 and 224 Motions in Limine. Court Reporter: Sarah Mitchell. (cpear) (Entered: 02/24/2023)
02/27/2023	258	RESTRICTED DOCUMENT - Level 1: Reply in Support of its 221 Motion in Limine No. 4 by Defendant Sandoz Inc. (Kornfeld, Richard) Modified on 2/28/2023 to add title (sdunb,). (Entered: 02/27/2023)
02/28/2023	259	NOTICE of Entry of Appearance by Lillian Anne Wallace on behalf of Sandoz Inc. Attorney Lillian Anne Wallace added to party Sandoz Inc.(pty:dft) (Wallace, Lillian) (Entered: 02/28/2023)
03/01/2023	260	NOTICE of Entry of Appearance by Tyler Doh on behalf of Sandoz Inc. Attorney Tyler Doh added to party Sandoz Inc.(pty:dft) (Doh, Tyler) (Entered: 03/01/2023)
03/01/2023	261	TRANSCRIPT of Trial Preparation Conference held on February 24, 2023 before Judge Moore. Pages: 1-72. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 03/01/2023)
03/01/2023	262	RESTRICTED TRANSCRIPT of proceedings held on February 24, 2023 before Judge Moore. Pages: 1-3. (smitc,) (Entered: 03/01/2023)
03/01/2023	263	BRIEF in Support of 224 MOTION in Limine # 5 to <i>Preclude Sandoz from Offering Evidence or Argument Regarding Non-Asserted Patents and Patent Claims (Plaintiffs' Supplemental Brief in Support of Their Motion in Limine #5 Regarding Certain Unasserted Patents)</i> filed by Plaintiffs Allergan Sales, LLC, Duke University. (Attachments: # 1 Exhibit A - Hearing Transcript Excerpt)(Reilly, Kathryn) (Entered: 03/01/2023)
03/01/2023	264	RESTRICTED DOCUMENT - Level 1: Supplemental Brief in Opposition to 224 MOTION in Limine # 5 by Defendant Sandoz Inc... (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Kornfeld, Richard) Modified on 3/6/2023 to add document title and linkage. (sphil,). (Entered: 03/01/2023)
03/02/2023	265	Unopposed MOTION for Leave to Restrict by Plaintiffs Allergan Sales, LLC, Duke University. (Attachments: # 1 Exhibit A (2008 Distributorship Agreement, Redacted) to Plaintiffs'

		Opposition to Sandoz's Motion in Limine #4 (ECF No. 243))(Rey, Jacob) (Entered: 03/02/2023)
03/02/2023	266	ORDER: This matter is before the Court on Plaintiffs' Unopposed Motion to Restrict Exhibit A to Plaintiffs' Opposition to Sandoz's Motion in Limine #4 (ECF No. 243) 265 . Plaintiffs request that that unredacted exhibit be maintained at Restriction Level 1. Being fully advised, the Motion is GRANTED. The Clerk of the Court is directed to maintain Exhibit A to Plaintiffs' Opposition to Sandoz's Motion in Limine #4 [243-1] UNDER RESTRICTION AT LEVEL 1. The Clerk is directed to enter ECF 265-1, Exhibit A to Plaintiffs' Opposition to Sandoz's Motion in Limine #4, as a separate, unrestricted docket entry. Plaintiffs indicate that they do not seek to restrict public access to the remainder of their Opposition to Sandoz's Motion in Limine #4 243 . Therefore, the Clerk is directed to lift the restriction on that document except as to Exhibit A [243-1]. SO ORDERED by Judge Raymond P. Moore on 3/2/2023. (Text Only Entry)(rmsec) (Entered: 03/02/2023)
03/02/2023	267	Exhibits in Support of 243 Restricted Document - Level 1, by Plaintiff Duke University. Filed per Ecf No. 266. (sphil,) (Entered: 03/02/2023)
03/03/2023	268	NOTICE of Entry of Appearance by James Y. Li on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney James Y. Li added to party Allergan Sales, LLC(pty:pla), Attorney James Y. Li added to party Allergan, Inc.(pty:cd), Attorney James Y. Li added to party Duke University (pty:pla) (Li, James) (Entered: 03/03/2023)
03/03/2023	269	NOTICE of Entry of Appearance by Jing Ying Zhao on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Jing Ying Zhao added to party Allergan Sales, LLC(pty:pla), Attorney Jing Ying Zhao added to party Allergan, Inc.(pty:cd), Attorney Jing Ying Zhao added to party Duke University (pty:pla) (Zhao, Jing Ying) (Entered: 03/03/2023)
03/03/2023	270	NOTICE of Entry of Appearance by Jing Ying Zhao on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University (Zhao, Jing Ying) (Entered: 03/03/2023)
03/10/2023	271	MOTION for Order to <i>Request Order of Witness Presentation at Trial</i> by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit A)(Wallace, Lillian) (Entered: 03/10/2023)
03/13/2023	272	Joint MOTION for Extension of Time to <i>Submit Deposition Designations and Objections</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Attachments: # 1 Proposed Order (PDF Only) (Granting Joint Motion for Extension of Time to Submit Deposition Designations and Objections))(Rey, Jacob) (Entered: 03/13/2023)
03/13/2023	273	ORDER: This matter is before the Court on the Parties' Joint Motion for Extension of Time to Submit Deposition Designations and Objections 272 in which the request until March 17, 2023 in which to file their deposition designations and objections. Being fully advised, the Motion is GRANTED. SO ORDERED by Judge Raymond P. Moore on 3/13/2023. (Text Only Entry) (rmsec) (Entered: 03/13/2023)
03/13/2023	274	Exhibit List <i>Plaintiffs' Revised Exhibit List</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 03/13/2023)
03/13/2023	275	Exhibit List <i>Defendant's Revised Trial Exhibit List</i> by Defendant Sandoz Inc.. (Wallace, Lillian) (Entered: 03/13/2023)
03/14/2023	276	NOTICE of Entry of Appearance by Carolyn S. Wall on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Carolyn S. Wall added to party Allergan Sales, LLC(pty:pla), Attorney Carolyn S. Wall added to party Allergan, Inc.(pty:cd), Attorney Carolyn S. Wall added to party Duke University (pty:pla) (Wall, Carolyn) (Entered: 03/14/2023)
03/15/2023	277	ORDER: This matter is before the Court on Defendants Motion Regarding Order of Proof at Trial 271 . The Court approves Plaintiffs' proposed order of presentation, except that Plaintiffs shall close first, followed by Defendant. The Court will consider a brief rebuttal closing by Plaintiffs. That matter will be resolved at a later time. Otherwise, the Motion is DENIED. Entered by Judge Raymond P. Moore on 3/15/2023. Text Only Entry (cpear) (Entered: 03/15/2023)

03/16/2023	278	Proposed Verdict Form (<i>Revised, Joint Submission</i>) by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 03/16/2023)
03/16/2023	279	Proposed Jury Instructions (<i>Revised, Joint Submission</i>) by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 03/16/2023)
03/16/2023	280	NOTICE of Entry of Appearance by William McGinley Jay on behalf of Sandoz Inc. Attorney William McGinley Jay added to party Sandoz Inc.(pty:dft) (Jay, William) (Entered: 03/16/2023)
03/17/2023	281	RESTRICTED DOCUMENT - Level 1: ORDER granting 221 Motion in Limine No. 4 to Limit the Damages Period as a Matter of Law and denying 224 Allergan's Motion in Limine #5 to Preclude Sandoz from Offering Evidence or Argument Regarding Non-Asserted Patents and Patent Claims. By Judge Raymond P. Moore on 3/17/2023. (sdunb,) (Entered: 03/17/2023)
03/20/2023	282	NOTICE of Entry of Appearance by Gerard Justin Cedrone on behalf of Sandoz Inc. Attorney Gerard Justin Cedrone added to party Sandoz Inc.(pty:dft) (Cedrone, Gerard) (Entered: 03/20/2023)
03/20/2023	283	TRIAL BRIEF by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 03/20/2023)
03/20/2023	284	TRIAL BRIEF by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 03/20/2023)
03/20/2023	285	APPENDIX <i>Joint Trial Glossary</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 03/20/2023)
03/20/2023	286	STIPULATION <i>Regarding Scope of Claim</i> by Defendant Sandoz Inc.. (Wallace, Lillian) (Entered: 03/20/2023)
03/20/2023	287	STIPULATION <i>Regarding Facts</i> by Defendant Sandoz Inc.. (Wallace, Lillian) (Entered: 03/20/2023)
03/22/2023	288	MINUTE ORDER: This matter comes before the Court on the various deposition designations submitted by the parties. Other than with respect to Mr. Hartwig who will be addressed separately and later, the Court overrules the objections to the designations, except as set forth below. The following objections are sustained: Azzalina at 216; DeLong at 127-133, 135, 144; Fuqua at 33-34, 55; Herrick at 75; McIver at 64-65; Storm at 123-124, 169; and Hill at 35 (as to lines 23 and 24 only). SO ORDERED by Judge Raymond P. Moore on 3/22/2023. (Text Only Entry) (rmsec) (Entered: 03/22/2023)
03/22/2023	289	Exhibit List <i>Plaintiffs' Revised Exhibit List</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 03/22/2023)
03/22/2023	290	Exhibit List (<i>Revised</i>) by Defendant Sandoz Inc.. (Wallace, Lillian) (Entered: 03/22/2023)
03/23/2023	291	MINUTE ORDER: This matter comes before the Court on the deposition designation of Gregory Hartwig. The following objections are sustained: pp. 76-77, pp. 79-80, pp. 229-233. A ruling on the following objections is deferred and will be addressed with counsel before Mr. Hartwig's testimony is presented to the jury: pp. 67-71, pp. 118-119, pp. 226-227. All other objections are overruled. SO ORDERED by Judge Raymond P. Moore on 3/23/2023. (Text Only Entry) (rmsec) (Entered: 03/23/2023)
03/24/2023	292	NOTICE of Entry of Appearance by Lindsay H. Autz on behalf of Allergan Sales, LLC, Allergan, Inc., Duke University Attorney Lindsay H. Autz added to party Allergan Sales, LLC(pty:pla), Attorney Lindsay H. Autz added to party Allergan, Inc.(pty:cd), Attorney Lindsay H. Autz added to party Duke University (pty:pla) (Autz, Lindsay) (Entered: 03/24/2023)
03/24/2023	293	Witness List (<i>Revised</i>) by Defendant Sandoz Inc.. (Wallace, Lillian) (Entered: 03/24/2023)
03/26/2023	294	Exhibit List (<i>Plaintiffs' Revised Exhibit List</i>) by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 03/26/2023)

03/27/2023	295	OBJECTIONS to <i>Evidence and Argument Subject to Issue Preclusion</i> by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 03/27/2023)
03/27/2023	296	COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 1 held on 3/27/2023. Trial continues. Court Reporter: Tammy Hoffschmidt. (cpear) (Entered: 03/28/2023)
03/27/2023	297	Jury List - Unredacted - Level 3 - Viewable by Court Only. (cpear) (Entered: 03/28/2023)
03/27/2023	298	Jury List. (cpear) (Entered: 03/28/2023)
03/28/2023	299	Exhibit List (<i>Plaintiffs' Revised Exhibit List</i>) by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 03/28/2023)
03/28/2023	300	COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 2 held on 3/28/2023. Trial continues. Court Reporter: Tammy Hoffschmidt. (cpear) (Entered: 03/29/2023)
03/29/2023	301	COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 3 held on 3/29/2023. Trial continues. Court Reporter: Tammy Hoffschmidt. (cpear) Modified on 3/30/2023 to correct text (cpear). (Entered: 03/30/2023)
03/30/2023	303	COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 4 held on 3/30/2023. Court Reporter: Tammy Hoffschmidt. (cpear) (Entered: 03/31/2023)
03/31/2023	302	Proposed Verdict Form (<i>Revised</i>) by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 03/31/2023)
03/31/2023	304	Proposed Jury Instructions <i>Regarding Teaching-Away</i> by Defendant Sandoz Inc.. (Filarski, Thomas) (Entered: 03/31/2023)
03/31/2023	305	COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 5. Trial completed on 3/31/2023. Court Reporter: Tammy Hoffschmidt. (cpear) (Entered: 03/31/2023)
03/31/2023	306	Plaintiffs' Exhibit List - Courtroom Deputy trial copy. (cpear) (Entered: 03/31/2023)
03/31/2023	307	Defendant's Exhibit List - Courtroom Deputy trial copy. (cpear) (Entered: 03/31/2023)
03/31/2023	308	Final Jury Instructions. (cpear) (Entered: 03/31/2023)
03/31/2023	309	Jury Note #1 - Unredacted - Level 3 - Viewable by Court Only. (cpear) (Entered: 03/31/2023)
03/31/2023	310	Jury Note #1. (cpear) (Entered: 03/31/2023)
03/31/2023	311	Jury Note #2- Unredacted - Level 3 - Viewable by Court Only. (cpear) (Entered: 03/31/2023)
03/31/2023	312	Jury Note #2. (cpear) (Entered: 03/31/2023)
03/31/2023	313	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (cpear) (Entered: 03/31/2023)
03/31/2023	314	JURY VERDICT. (cpear) (Entered: 03/31/2023)
04/03/2023	315	AMENDED COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Docket entry 305 Courtroom Minutes re: Jury Trial - Day 5 is amended only to include the Clerk's Note regarding exhibits and depositions as highlighted. Court Reporter: Tammy Hoffschmidt. (cpear) (Entered: 04/03/2023)
04/10/2023	316	NOTICE <i>Regarding Division of the Damages Award Among Plaintiffs</i> by Plaintiffs Allergan Sales, LLC, Duke University (Rey, Jacob) (Entered: 04/10/2023)
04/19/2023	317	STIPULATION (<i>Joint</i>) on <i>Deposition Clips Played During Trial</i> by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6)(Wallace, Lillian) (Entered: 04/19/2023)

05/01/2023	318	STIPULATION <i>and Proposed Order of Dismissal of Sandoz's Counterclaims</i> by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 05/01/2023)
05/01/2023	319	ORDER OF DISMISSAL OF COUNTERCLAIMS. The Court, having reviewed the 318 Stipulation and being fully advised, hereby GRANTS the parties' joint request for dismissal and ORDERS that Sandoz's Counterclaims I-VI are dismissed without prejudice pursuant to Fed. R. Civ. P. 41(a)(1)(A)(ii). By Judge Raymond P. Moore on 5/1/2023. (sdunb,) (Entered: 05/01/2023)
05/11/2023	320	MINUTE ORDER: This matter is before the Court sua sponte and in light of Plaintiffs' Notice Regarding Division of the Damages Award Among Plaintiffs 316 . In that Notice, Plaintiffs informed the Court that they were preparing a proposed final judgment reflecting the proper division of the damages award, as well as the proportional shares of pre-judgment interest. Plaintiffs intended to file that document by May 1, 2023, along with a status report on Defendant's counterclaims. On May 1, 2023, however, Defendant filed a joint stipulation to dismiss the counterclaims 318 . No proposed final judgment has been filed to date. Therefore, the Court ORDERS Plaintiffs to file a proposed final judgment on or before May 31, 2023. SO ORDERED by Judge Raymond P. Moore on 5/11/2023. (Text Only Entry) (rmsec) (Entered: 05/11/2023)
05/19/2023	321	NOTICE re 320 Minute Order,,, (<i>JOINT SUBMISSION OF PROPOSED FINAL JUDGMENT</i>) by Plaintiffs Allergan Sales, LLC, Duke University (Attachments: # 1 Exhibit A - Proposed Order, # 2 Exhibit B - Proposed Judgment After Verdict)(Rey, Jacob) (Entered: 05/19/2023)
05/22/2023	322	ORDER DIRECTING THE CLERK OF THE COURT TO ENTER JUDGMENT by Judge Raymond P. Moore on 5/22/2023. (cpear) (Entered: 05/22/2023)
05/22/2023	323	FINAL JUDGMENT pursuant to 322 Order. Entered by the Clerk of the Court on 5/22/2023. (cpear) (Entered: 05/22/2023)
05/31/2023	324	Joint MOTION for Leave to File Excess Pages <i>and to Extend Certain Briefing Deadlines for Upcoming Rule 50(b) Briefing</i> by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 05/31/2023)
06/05/2023	325	Proposed Bill of Costs by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 06/05/2023)
06/09/2023	326	ORDER granting 324 Joint Motion to Request Additional Pages and to Extend Certain Briefing Deadlines for Upcoming Rule 50(b) Briefing. SO ORDERED by Judge Raymond P. Moore on 6/9/2023. (Text Only Entry)(rmsec) (Entered: 06/09/2023)
06/14/2023	327	NOTICE by Clerk re 325 Proposed Bill of Costs. As set in the Proposed Bill, the hearing for this matter will be held on July 27, 2023 at 9:30 a.m. MST. The hearing will be held IN PERSON - the parties are directed to have counsel asserting the Proposed Bill of Costs and opposing counsel presenting objections be physically present for the hearing. The hearing will be held in Courtroom C401 (4th floor) of the Byron Rogers U.S. Courthouse, 1929 Stout Street, Denver [NOT the Arraj Courthouse]. Due to the page length of the Proposed Bill of Costs, the Clerk reminds Plaintiffs to deliver a binder containing a copy of the Bill of Costs to the Clerk's office no later than July 21, 2023. See p. 16 of the Guide. The Clerk reminds the parties that a Statement of Conferral must be filed no later than the close of business of the clerk's office at 5:00 p.m. (Mountain Time) the day before the hearing in order to confirm the attempts to reach a settlement on either some or all of the requested costs, per local rules LCivR 54.1 and 77.1, and to confirm the parties have utilized the Clerk's Guide to Bills of Cost Hearings (see attached) in their discussions. Failure to file a Statement of Conferral by the close of business the day before the hearing will result in the Bill of Costs being summarily denied and the hearing will be vacated. Finally, the Clerk strongly encourages the parties to reach an agreement as to individual costs items - or preferably - a global settlement, in light of the Rule One directive that the court and PARTIES work to secure the just, speedy, and inexpensive determination of every action and proceeding. (ashee) (Entered: 06/14/2023)

06/15/2023	328	Unopposed MOTION for Bond <i>Approval and Stay of Execution on the Judgment</i> by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit A-Executed Appeal Bond, # 2 Exhibit B-Proposed Order) (Kappers, Robert) (Entered: 06/15/2023)
06/16/2023	329	ORDER granting 328 Defendant Sandoz Inc.s Unopposed Motion for Approval of Bond and Stay of Execution on the Judgment. The bond tendered by Sandoz and attached as Exhibit A to its Motion is APPROVED. Execution on the Final Judgment (including execution on damages, pre-judgment interest, post-judgment interest, and costs) is STAYED pending the final resolution of any post trial motions and/or appeal in this case. SO ORDERED by Judge Raymond P. Moore on 6/16/2023.(jtorr,) (Entered: 06/16/2023)
06/20/2023	330	MOTION for Judgment as a Matter of Law <i>Under Rule 50</i> by Defendant Sandoz Inc.. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5)(Kappers, Robert) (Entered: 06/20/2023)
06/20/2023	331	MOTION for New Trial <i>Under Rule 59</i> by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 06/20/2023)
06/27/2023	332	Joint MOTION for Extension of Time to File Response/Reply as to 331 MOTION for New Trial <i>Under Rule 59</i> , 330 MOTION for Judgment as a Matter of Law <i>Under Rule 50</i> , Joint MOTION for Leave to File Excess Pages by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 06/27/2023)
06/27/2023	333	ORDER granting 332 Joint Motion to Extend Certain Briefing Deadlines and for Additional Pages. SO ORDERED by Judge Raymond P. Moore on 6/27/2023. (Text Only Entry)(rmsec) (Entered: 06/27/2023)
06/30/2023	334	MOTION to Withdraw as Attorney (<i>Chuan "CiCi" Cheng</i>) by Plaintiffs Allergan Sales, LLC, Duke University. (Cheng, Chuan) (Entered: 06/30/2023)
07/05/2023	335	ORDER granting 334 Motion to Withdraw as Attorney. Attorney Chuan Cheng terminated. SO ORDERED by Judge Raymond P. Moore on 7/5/2023. (Text Only Entry)(rmsec) (Entered: 07/05/2023)
07/19/2023	336	STIPULATION re 325 Proposed Bill of Costs <i>Stipulation Specifying Awardable Costs</i> by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 07/19/2023)
07/21/2023	337	Costs Taxed by Clerk in the amount of \$90,000.00 against Defendant Sandoz, Inc. and in favor of Plaintiffs. Costs awarded pursuant to the parties' Stipulation, Docket no. 336. Accordingly, the hearing set for July 27, 2023 is VACATED. (ashee) (Entered: 07/21/2023)
07/25/2023	338	RESPONSE to 331 MOTION for New Trial <i>Under Rule 59 Plaintiffs Opposition To Sandozs Motion For A New Trial Under Rule 59 (D.I. 331)</i> filed by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 07/25/2023)
07/25/2023	339	RESPONSE to 330 MOTION for Judgment as a Matter of Law <i>Under Rule 50 Plaintiffs Opposition To Sandozs Renewed Motion For A Judgment As A Matter Of Law</i> filed by Plaintiffs Allergan Sales, LLC, Duke University. (Rey, Jacob) (Entered: 07/25/2023)
08/15/2023	340	REPLY to Response to 331 MOTION for New Trial <i>Under Rule 59</i> filed by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 08/15/2023)
08/15/2023	341	WITHDRAWN (DUPLICATIVE OF ECF NO. 342) REPLY to Response to 330 MOTION for Judgment as a Matter of Law Under Rule 50 filed by Defendant Sandoz Inc.. (Kappers, Robert) Modified on 8/17/2023 (rmsec). (Entered: 08/15/2023)
08/15/2023	342	REPLY to Response to 330 MOTION for Judgment as a Matter of Law <i>Under Rule 50</i> filed by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 08/15/2023)
08/16/2023	343	Unopposed MOTION to Withdraw <i>Duplicate Docket Entry 341</i> by Defendant Sandoz Inc.. (Kappers, Robert) (Entered: 08/16/2023)

08/17/2023	344	ORDER granting 343 Sandoz's Unopposed Motion to Withdraw Duplicate Docket Entry 341. ECF No. 341 is deemed WITHDRAWN. SO ORDERED by Judge Raymond P. Moore on 8/17/2023. (Text Only Entry)(rmsec) (Entered: 08/17/2023)
09/21/2023	345	ORDER denying 330 Motion for Judgment as a Matter of Law Under Rule 50 and 331 Motion for a New Trial Under Rule 59. SO ORDERED by Judge Raymond P. Moore on 9/21/2023.(jtorr,) (Entered: 09/21/2023)
10/13/2023	346	NOTICE OF APPEAL to FEDERAL CIRCUIT as to 345 Order on Motion for Judgment as a Matter of Law, Order on Motion for New Trial, 323 Judgment by Defendant Sandoz Inc. (Filing fee \$ 505, Receipt Number ACODC-9343765) (Tellez, Katherine) (Entered: 10/13/2023)
10/16/2023	347	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 346 Notice of Appeal filed by Sandoz Inc. to the Federal Circuit Court of Appeals. (Retained Counsel, Fee paid) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record)(jtorr,) (Entered: 10/16/2023)
10/19/2023	348	TRANSCRIPT ORDER FORM re 346 Notice of Appeal, by Defendant Sandoz Inc. (Tellez, Katherine) (Entered: 10/19/2023)
10/25/2023	349	USCA CASE NUMBER 24-1078 as to 346 Notice of Appeal to Federal Circuit filed by Sandoz Inc. (jtorr,) (Entered: 10/25/2023)
11/13/2023	350	TRANSCRIPT ORDER FORM by Plaintiffs Allergan Sales, LLC, Duke University, Counter Defendant Allergan, Inc., Defendant Sandoz Inc., Special Master James Gregory Whitehair. necessary for proceedings held on March 27, 2023 through March 31, 2023 re 346 Notice of Appeal,. (thoff,) (Entered: 11/13/2023)
11/27/2023	351	VOIR DIRE TRANSCRIPT of proceedings held on March 27, 2023 before Judge Moore. Pages: 1-110. (thoff,) (Entered: 11/27/2023)
11/27/2023	352	TRANSCRIPT of Jury trial held on March 27, 2023 before Judge Moore. Pages: 1-66. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff,) (Entered: 11/27/2023)
11/27/2023	353	TRANSCRIPT of Jury trial held on March 28, 2023 before Judge Moore. Pages: 67-308. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff,) (Entered: 11/27/2023)
11/27/2023	354	TRANSCRIPT of Jury trial held on March 29, 2023 before Judge Moore. Pages: 309-557. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court

		Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff,) (Entered: 11/27/2023)
11/27/2023	355	TRANSCRIPT of Jury trial held on March 30, 2023 before Judge Moore. Pages: 558-764. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff,) (Entered: 11/27/2023)
11/27/2023	356	TRANSCRIPT of Jury trial held on March 31, 2023 before Judge Moore. Pages: 765-860. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff,) (Entered: 11/27/2023)
11/18/2025	357	OPINION filed for the court re: Appeal to Federal Circuit 346 Notice of Appeal, filed by Sandoz Inc. (USCA Case No. 24-1078). (tlove,) (Entered: 11/19/2025)
11/18/2025	358	JUDGMENT re: Appeal to Federal Circuit 346 Notice of Appeal, filed by Sandoz Inc. (USCA Case No. 24-1078) (tlove,) (Entered: 11/19/2025)
12/11/2025	359	Joint MOTION for Extension of Time to <i>File Bill of Costs</i> by Defendant Sandoz Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Kornfeld, Richard) (Entered: 12/11/2025)
12/12/2025	360	ORDER granting 359 Joint Motion for Extension of Time to File Bill of Costs. The deadline to file a bill of costs shall be forty-five (45) days from the date the U.S. Court of Appeals for the Federal Circuit issues its mandate from the appeal in this case. SO ORDERED by Judge Raymond P. Moore on 12/12/2025. (Text Only Entry)(rmsec) (Entered: 12/12/2025)
02/23/2026	361	ORDER filed by the Court of Appeals for the Federal Circuit re: 346 Notice of Appeal, filed by Sandoz Inc.. (USCA Case No. 2024-1078). (Attachments: # 1 Errata)(agryan) (Entered: 02/23/2026)
03/02/2026	362	MANDATE re Appeal to Federal Circuit 346 Notice of Appeal, filed by Sandoz Inc.. (Federal Circuit Case No. 24-1078) (agryan) (Entered: 03/02/2026)

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